



WHITFIELD COUNTY BOARD OF COMMISSIONERS

REGULAR BUSINESS MEETING

Monday, September 14th, 2026 at 6:00 PM

Courthouse Meeting Room, 205 N. Selvidge Street, Dalton, GA

- (1) Call to Order by the Chair
- (2) Invocation and Pledge of Allegiance to the Flag
- (3) Determination of Quorum
- (4) Approval of Agenda
- (5) Consent Agenda Items
 - a. Approve any budget amendment for 2025 as needed by our financial auditors and in compliance with all state regulations for approved items and passing votes from last month's public Board of Commissioners meeting
- (6) Approval of Minutes
 - a. August 10th, 2026 Regular Business Meeting
- (7) Recognitions, Proclamations, and/or Awards
 - a. May 2026 Employee of the Month
- (8) Reports to the Board
 - a. Report of Chair
 - b. Report of other Commissioners
 - c. Report of County Administrator
 - d. Report of Department Heads/Staff
 1. Finance – July 2026 Financials
 2. Resolution – Tax Anticipation Note (TAN)
- (9) Public Comment

For Consideration Old Business

- (10) Code Revision – Chapter 5 – Building & Related Activities
- (11) Code Revision – Chapter 6 – Land Development

New Business

- (12) Accept Petition from VHCS Holdings, LLC to close and abandon for public purposes a portion of Mallard Road
- (13) Ratify – CJCC GA Opioid Crisis Abatement Trust Grant Application
- (14) FY 2026 – Byrne Justice Assistance Grant Application
- (15) Sheriff's Office – FY26 Bridging Immigration Grant Application
- (16) GDMPO – FY 2027 Planning Services Contract Ratify
- (17) Sheriff's Office
 - a. Vehicle Surplus
 - b. Vehicle Purchase Four (4) 2027 Ford Mid-Size Suvs
 - c. Vehicle Purchase One (1) 2027 4x4 crew cab pick-up truck

....Continued

(18) Probate Court and Superior Court – Georgia Probation Services Contract Renewal

(19) Rezoning Recommendation

- a. Chrissie Cline – parcel (10-216-04-000)
- b. Sharon Gibson – parcel (27-119-01-000)
- c. Diana Rico – parcel (12-103-02-063)

(20) Public Comment for General or Future Matters

(21) Adjournment

MINUTES FOR THE REGULAR BUSINESS MEETING OF THE WHITFIELD COUNTY BOARD OF COMMISSIONERS HELD MONDAY, AUGUST 10, 2026, AT 6:00 P.M. AT THE COURTHOUSE BOC MEETING ROOM LOCATED AT 205 N. SELVIDGE STREET

REGULAR BUSINESS MEETING

The Chairman called the meeting to order.
Invocation conducted and Pledge of allegiance to the Flag.
Roll call to determine quorum.

The following members were present:

Jevin Jensen, Chairman
Barry W. Robbins, Vice-Chair
Robby Staten, Member
John Thomas, Member
Greg Jones, Member

Others Present:

Robert Smalley, County Attorney
Robert Sivick, County Administrator
Department Heads
Citizens
Press

Motion was made by Commissioner Robbins and seconded by Commissioner Staten to approve the agenda as presented. The motion was approved 4-0, with Commissioners Staten, Jones, Thomas, and Robbins in agreement.

Approval of Minutes: Motion was made by Commissioner Robbins and seconded by Commissioner Jones to approve the July 13, 2026 Regular Business Meeting Minutes as presented. The motion was approved 4-0, with Commissioners Jones, Staten, Thomas, and Robbins in agreement.

Chairman Jensen noted that Dr. Lee Collins from the Dalton Whitfield Library Board was in attendance.

Chairman Jensen recognized Keshia Densmore as the Employee of the Month for April 2026.

Chairman's Report: Chairman Jensen noted the new proposed 50 year time capsule is coming along and citizens will be able to submit items for inclusion soon. The new time capsule will be made of stainless steel and will be sealed in the courthouse to be opened in 2076.

Report from Commissioners:

Commissioners Robbins, Staten, Jones and Thomas did not have any reports for this month.

June 2026 Financial Statement: Motion was made by Commissioner Staten and seconded by Commissioner Robbins to approve the June Financial Statement as presented by Chief Finance Officer Debbie Godfrey. Local Option Sales Tax (LOST) collections: June collections of \$1,439,799 were 9.74% more than budgeted collections of \$1,312,008. This was 8.45% more than May collections of \$1,327,611. YTD collections of \$7,923,807 were 4.00% more than PY collections of \$7,619,118 for the same time frame. TAVT collections: June collections of \$478,459 were 3.93% less than May collections of \$498,054. YTD collections of \$2,968,632 were 1.31 % more than PY collections of \$2,930,205 for the same time frame. YTD actual revenues of \$23,708,897 were more than projected revenues of \$23,650,342 by \$58,555 or up by .25%. YTD actual expenditures of \$34,445,239 were less than projected expenditures of \$34,156,576 by \$711,337 or down by 2.08. The motion was approved 4-0, with Commissioners Thomas, Jones, Staten and Robbins in agreement.

Public Comment:

No comments.

First Reading – Code Revision Chapter 5– Building & Related Activities: Chairman Jensen informed the Board and public of the proposed revision to the Unified Zoning Ordinance at the request of the Whitfield County Board of Commissioners for Chapter 5 – Building & Related Activities, Includes

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4 Articles: Building, Manufactured Housing, Addressing, Sign Regulations, and for other purposes. No action was taken on this item.

First Reading – Code Revision Chapter 6 – Land Development: Chairman Jensen informed the Board and public of the proposed revision to the Unified Zoning Ordinance at the request of the Whitfield County Board of Commissioners for Chapter 6 – Land Development Includes 3 Articles: Unified Subdivision Regulations, Road Use regulations, Regulatory Ordinances, and for other purposes. No action was taken on this item.

Transit – Drug and Alcohol Testing Policy Revision: Motion was made by Commissioner Jones and seconded by Commissioner Robbins to approve the 2024 amended policy as presented. The motion was approved 4-0, with Commissioners Jones, Thomas, Staten and Robbins in agreement

County Transit Service: Motion was made by Commissioner Staten and seconded by Commissioner Jones to approve submitting the State Fiscal Year 2028 5307 Urban Transportation Grant application. If awarded, these funds would be used to offset operating and capital costs incurred by the transit service. The Board of Commissioners would be responsible for a 50% match of operating funds and a 10% match of capital funds. Due to Whitfield County trending urban, the exact dollar amount to be awarded is unknown. However, the amount is not to exceed funds approved for the State Fiscal Year 2028. The motion was approved 4-0, with Commissioners Jones, Staten, Thomas and Robbins in agreement.

2025 JAG Grant Acceptance: Motion was made by Commissioner Robbins and seconded by Commissioner Staten to accept the JAG grant award as presented. In June 2026, the BOC approved the application for the FY 2025 BJA Edward Byrne Memorial Justice Assistance Grant (JAG). This is a federal grant administered by the Bureau of Justice Assistance. On August 1, 2026, we received the notice of award in the amount of \$28,923 to be used for drug testing supplies for the Conasauga Drug Treatment Court. The motion was approved 4-0, with Commissioner Staten, Jones, Thomas and Robbins in agreement.

Finance Department – Various Budget Amendments: Motion was made by Commissioner Thomas and seconded by Commissioner Jones to approve the following budget amendments as presented. Finance is requesting a budget amendment for various revenues and expenditures.

General Fund:

Dog Park. Accept the Community Foundation dog park grant.

Increase donation revenue and dog park construction expenditures by \$30,000.

(2) USA 250th Celebration. Increase donation revenue by \$5,000 and event expenditures by \$161,150. (Donations of \$125,000 were received in 2025.)

(3) District Attorney's Office salary increases and retention bonuses required by State. Increase DA personnel expenditures by \$127,609.

(4) Public Defender's Office salary increases and retention bonuses required by State. Increase Public Defender personnel expenditures by \$36,593.

(5) Local Road Assistance Funds. Accept the LRA grant funding from the state. Increase LRA revenue and expenditures by \$1,555,661.

Total General Fund Revenue increase \$1,590,661. Total General Fund expenditure increase \$1,911,013.

Transit Fund:

Transit Trust Fund Program Funds. Accept the 2026 TTFP funds for purchase of buses. Increase TTFP revenue and capital expenditures by \$497,109. The motion was approved 4-0, with Commissioner Robbins, Staten, Thomas and Jones in agreement.

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Engineering - Hwy. 201 Intersection Final Design Contract: Motion was made by Commissioner Staten and seconded by Commissioner Jones to award the design contract to B&N for an amount not to exceed \$493,502. Burgess & Niple (B&N) completed two conceptual designs for roundabouts at the intersections of Hwy. 201, Old Lafayette Rd., and Houston Valley Rd. GDOT has reviewed these and approved an oval concept to tie these roads together. Now that we know which concept with which to proceed, B&N has presented a cost proposal to perform final design on the project. Their fee proposal is attached. Design services will include a detailed survey of the roadway, topography, right-of-way and property frontage boundaries, and utilities. Full construction plans will be developed, including staging plans for building the new intersection under traffic. We do not anticipate GDOT allowing us to close the road for any portion of construction, so we have to design the roundabout to be built with single-lane closures only. Also included is coordination with GDOT and all utility companies who have infrastructure in the right-of-way. B&N will produce bid documents and support during the bidding and pre-construction process. Their proposed fee for all of these services is not to exceed \$493,502. The motion was approved 4-0, with Commissioners Robbins, Jones, Staten and Thomas in agreement.

Public Works Department – Equipment Purchase: Motion was made by Commissioner Robbins and seconded by Commissioner Jones to approve the purchase of a used WA320-8 Wheel Loader at \$232,968.01 using 2024 SPLOST. Public Works will purchase the used WA320-8 Wheel Loader from Tractor & Equipment Company for \$232,968.01. This will be replacing the 1999 CAT Wheel Loader. The motion was approved 4-0, with Commissioners Staten, Thomas, Robbins and Jones in agreement.

Sheriff's Office SRO w/RESA: Motion was made by Commissioner Staten and seconded by Commissioner Jones to approve the SRO MOU with the North Georgia Regional Educational Service Agency School as presented. The Intergovernmental Agreement (Memorandum of Understanding) between the Whitfield County Sheriff's Office and Board of Control of North Georgia Regional Educational Service Agency School Resource Officers (SROs) hereto agree as follows: To the extent that the Sheriff remains willing to designate as many as one (1) Sheriff's Deputy as an SRO for placement at Northstar School and assignment by the RESA Board and Sheriff. The School Board shall reimburse directly to the County, in equal monthly installments, of a flat rate of \$7,500.00 per SRO, per month, for wages for the SRO for an annual total of \$90,000.00. The School Board shall not be responsible for reimbursing the County for other expenditures, such as uniforms or mileage. The motion was approved 4-0, with Commissioners Robbins, Staten, Jones and Thomas in agreement.

Rezoning Recommendation: Motion was made by Commissioner Robbins and seconded by Commissioner Jones to approve the recommendation of the planning commission approving the request of **Dennis and Melissa Flowers to rezone from General Agriculture (GA) and Rural Residential (R-5) to Rural Residential (R-5) and General Agriculture (GA) a tract of land totaling 17.08 acres located at 437 Cohutta Beaverdale Road, Cohutta, Georgia. Parcels (11-093-02-006 and 11-093-02-008).** The motion was approved 4-0, with Commissioners Robbins, Staten, Thomas, and Jones in agreement.

Rezoning Recommendation: Motion was made by Commissioner Robbins and seconded by Commissioner Jones to approve the recommendation of the planning commission approving the request of **Kenneth Cooper to rezone from Low Density Single Family Residential (R-2) to General Agriculture (GA), and for a special use permit for a telecommunications tower, a tract of land totaling 229.05 acres located on Mount Olivet Road, Dalton, Georgia. Parcels (11-084-01-000 and 11-098-02-000).** The motion was approved 4-0, with Commissioners Robbins, Staten, Thomas, and Jones in agreement.

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Rezoning Recommendation: Motion was made by Commissioner Robbins and seconded by Commissioner Jones to approve the recommendation of the planning commission approving the request of **Tracy Baldridge to rezone from General Agriculture (GA) to Rural Residential (R-5) a tract of land totaling 1.00 acre located at 198 Crosby Way, Dalton, Georgia. Parcel (10-215-01-000).** The motion was approved 4-0, with Commissioners Robbins, Thomas, Staten and Jones in agreement.

Rezoning Recommendation: Motion was made by Commissioner Robbins and seconded by Commissioner Jones to approve the recommendation of the planning commission approving the request of **Dalton Auction Company to rezone from General Commercial (C-2) to Light Manufacturing (M-1) a tract of land totaling 2.65 acres located at 106 Lucille Drive, Dalton, Georgia. Parcel (12-313-02-019).** The motion was approved 4-0, with Commissioners Robbins, Thomas, Staten and Jones in agreement.

Rezoning Recommendation: Motion was made by Commissioner Robbins and seconded by Commissioner Jones to approve the recommendation of the planning commission approving the request of **Maria Decisneros to rezone from Rural Residential (R-5) to General Commercial (C-2) a tract of land totaling 2.13 acres located at 3408 S. Dixie Highway, Dalton, Georgia. Parcel (13-044-05-003).** The motion was approved 4-0, with Commissioners Robbins, Jones, Thomas, and Jones in agreement.

Rezoning Recommendation: Motion was made by Commissioner Robbins and seconded by Commissioner Jones to postpone the rezoning request of **BC Managing LLC to rezone from Low Density Single Family Residential (R-2) to Zero Lot Line Residential (R-4) a tract of land totaling 42 acres located at 1006 Willowdale Road NW and unaddressed Willowdale Road NW Dalton, Georgia. Parcels (12-146-03-000 and 12-146-02-000).** Motion was to postpone until the City of Dalton approved the annexation of the parcels. The motion was approved 4-0, with Commissioners Robbins, Thomas, Staten and Jones in agreement.

PUBLIC COMMENT:

Hannah Koppenhaver addressed the Board regarding the Georgia open meetings act.

James Worth addressed the Board about the smell coming for the industrial park at the south end of the County.

Several individuals spoke on the topic of Data Centers and how they would like for the Board to issue a moratorium on data centers in Whitfield County.

ADJOURN Unanimous

JEVIN JENSEN, CHAIRMAN
WHITFIELD COUNTY BOARD OF COMMISSIONERS

BLANCA CARDONA, COUNTY CLERK

DATE: / /

Agenda Item

- ☐ Work Session
☐ Special Called Meeting
☒ Regular Business Meeting

Meeting Date: September 14, 2026
 Subject: July 2026 Financial Statements - Unaudited
 Department: Finance
 In Budget Amount: Operating- _____ Capital- _____
 Expenditure Line Item # _____
 Not in Budget Amount: _____
 Funding Source: _____
 Date needed: September 14, 2026



Whitfield County Board of Commissioners
 301 W. Crawford Street
 Dalton, Georgia 30720
 Phone: 706-275-7507
 Fax: 706-275-7540

History/Facts/Issues: This is your opportunity to explain the who, what, when, where, and why.

***Local Option Sales Tax (LOST) collections:**

- > July collections of \$1,355,603 were 3.32% more than budgeted collections of \$1,312,008.
- > This was 5.85% less than June collections of \$1,439,779.
- > YTD collections of \$9,279,409 were 4.35% more than PY collections of \$8,892,743 for the same time frame.

***TAVT collections:**

- > July collections of \$517,510 were 8.16% more than June collections of \$478,459.
- > YTD collections of \$3,486,142 were 1.91% more than PY collections of \$3,420,681 for the same time frame.

***YTD actual revenues of \$28,010,238 were more than projected revenues of \$26,148,524 by \$1,861,714 or up by 7.12%.**

***YTD actual expenditures of \$39,224,885 were less than projected expenditures of \$39,334,783 by \$109,898 or down by .28%.**

Suggested Motion:

Approve the July 2026 Financial Statements as presented.

Request Made By: Debbie Godfrey

County Administrator's
 Recommended Action:

Clerk Use ONLY

Motion/Second:	Approved:	Date:

Whitfield County, Georgia
General Fund Schedule of Revenues, Expenditures, and Changes in Fund Balance - Unaudited
Year to Date Totals as of July 31, 2026
With Comparative Totals for 2025

	2026				2025
	Original Budget	Year to Date Projected	Year to Date Actual	Variance/ Available Budget	Year to Date Actual
REVENUES					
Accrued Taxes	\$ 47,096,797	\$ 16,273,896	\$ 16,566,496	\$ 292,600	\$ 14,841,967
Licenses and Permits	1,031,300	639,092	662,970	23,878	540,096
Intergovernmental Revenue	4,670,322	2,830,950	4,386,610	1,555,660	4,858,049
Charges for Services	3,973,850	2,574,947	2,615,999	41,052	2,377,983
Fines and Forfeitures	913,000	532,583	528,017	(4,566)	523,326
Investment Income	468,000	273,000	287,349	14,349	357,240
Contributions - Private Sources	13,000	30,130	55,945	25,815	157,850
Miscellaneous	2,858,038	1,315,243	1,228,168	(87,075)	997,783
Other Financing Sources	1,205,000	1,678,683	1,678,683	-	124,800
	<u>62,229,307</u>	<u>26,148,524</u>	<u>28,010,238</u>	<u>1,861,714</u>	<u>24,779,094</u>
EXPENDITURES					
General Government	\$ 13,069,919	\$ 7,582,175	\$ 7,418,923	\$ 163,251	\$ 7,063,202
Judicial	8,832,915	5,113,440	5,058,289	\$ 55,151	4,848,206
Public Safety	27,194,228	15,751,220	16,118,515	\$ (367,296)	14,546,072
Public Works	9,113,910	5,888,317	5,598,470	\$ 289,847	5,049,569
Health and Welfare	1,008,074	582,438	568,129	\$ 14,310	582,937
Culture and Recreation	3,094,686	1,796,552	1,943,405	\$ (146,853)	1,648,305
Housing and Development	3,445,193	1,827,887	1,722,965	\$ 104,923	1,933,548
Debt Service	-	-	-	-	-
Other Financing Uses	1,359,005	792,754	796,189	(3,436)	954,971
	<u>67,117,930</u>	<u>39,334,783</u>	<u>39,224,885</u>	<u>109,897</u>	<u>36,626,811</u>
EXCESS OF REVENUES OVER EXPENDITURES	\$ (4,888,623)	\$ (13,186,259)	\$ (11,214,647)	\$ 1,971,611	\$ (11,847,716)

Whitfield County, GA
General Fund Revenue Variance Explanation - Unaudited
Year to Date as of July 31, 2026

<u>Revenue Category</u>	<u>Variance Favorable (Unfavorable)</u>	<u>Explanation</u>
<u>Taxes</u>		
	-	Property taxes - M&O
	56,142	Property taxes - TAVT
	71,083	Franchise taxes
	95,355	LOST collections
	(24,125)	Alcoholic beverage taxes
	81,368	Tax Collection Penalties, Int. & Fees
	12,777	Net of all others
	292,600	Taxes Total
<u>Licenses</u>		
	(3,492)	Zoning/Planning
	24,723	Building Permits
	2,647	Net of all others
	23,878	Licenses Total
<u>Intergovernmental</u>		
	1,555,660	State Grant-LMIG
	-	State Indirect Grant
	-	JDA Pilot Payments
	-	D/W Solid Waste Pmt.
	1,555,660	Intergovernmental Total
<u>Charges for Services</u>		
	13,618	Clerk of Court
	(471)	Probate Court
	(22,133)	Magistrate Court
	85,962	State of GA - Inmate Housing
	(21,850)	City of Dalton - Inmate Housing
	(17,360)	City of Dalton (Stormwater & other)
	(18,872)	Jail Construction - Staffing
	40,626	Recreation activity fees
	(24,093)	Other
	5,625	Net of all others
	41,052	Charges for Services Total
<u>Fines and Forfeitures</u>		
	52,955	Clerk of Court
	(13,206)	Magistrate Court
	(40,153)	Probate Court
	(4,163)	Juvenile Court
	(4,566)	Fines and Forfeitures Total
<u>Investment Income</u>		
	14,349	Investment income
	14,349	Investment Income Total
<u>Contributions</u>		
	25,815	Contributions
	25,815	Contributions total
<u>Miscellaneous</u>		
	(87,075)	Timing of billings and collections
	(87,075)	Miscellaneous Total
<u>Other</u>		
	-	Op Transfers In - Other
	-	Other Total
	1,861,713	Total Favorable (Unfavorable) Variance

* Please note that whenever possible we calculate the projected budget based upon when receipts are expected (monthly, quarterly, etc). However, when this is not possible, we must assume 1/12th of the revenue will be collected each month.

Whitfield County, GA
General Fund Expenditure Variance Explanation - Unaudited
Year to Date as of July 31, 2026

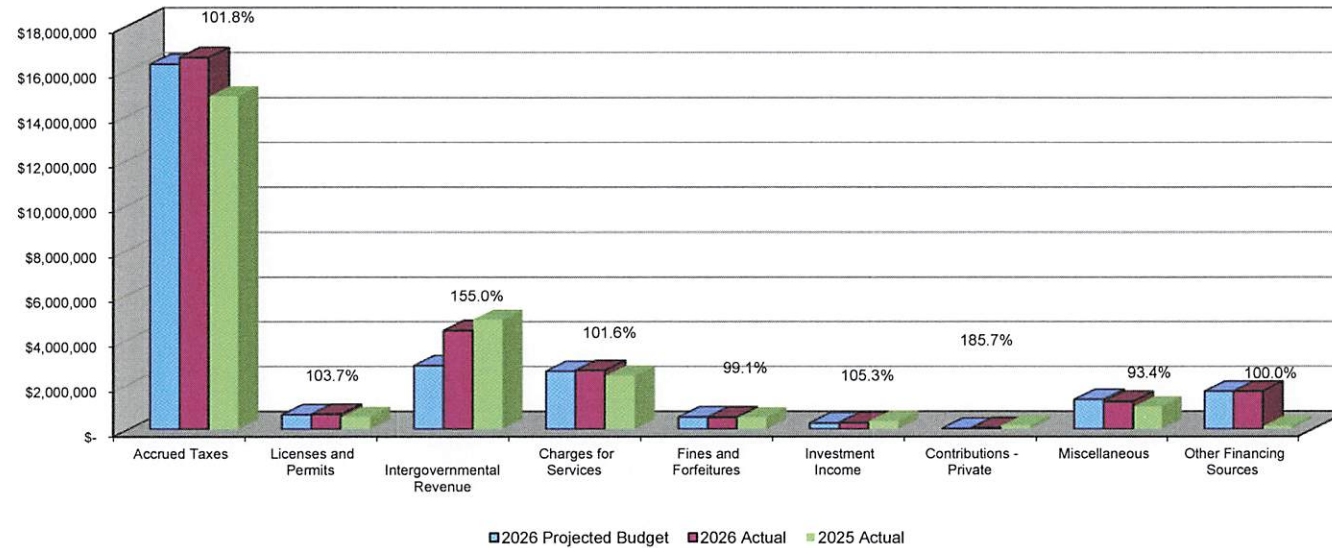
Expenditure Function	Variance Favorable (Unfavorable)	Explanation
<u>General Government</u>		
BOC	(74,934)	WF Lease and Utilities increased after budget process so they are underbudgeted.
Attorney Fees	28,284	
IT	(139,028)	Cisco, Adlumin Renewal, Ninja Adv. Pro (all annual pd in Jan) Barracuda ann. pmt in Mar
HR	(56,285)	Kronos annual renewal paid in Jan. and ARC grant (to be reimbursed)
Tax Assessor	89,952	Vacancies in the dept., Pictometry & True Roll annual pmts in Mar
Bd. Of Equalization	35,864	Appeal costs less than budgeted.
Public Relations	15,686	Unpaid leave.
Others	263,711	No individual dept. with a greater than 5% budget variance.
	163,250	General Government Total
<u>Judicial</u>		
Court Admin	(33,342)	Translator (encumbered for full year)
DA	(64,248)	SPCR contract encumbered for full yr & bonuses pd by state that county had to pay also
Probate Court	28,088	Some line items running underbudget & will be used later in the year
Juvenile Court	(50,848)	Indigent Def Contract & Guardians Ad Litem are encumbered for full yr.
Public Defender	(16,176)	Bonuses pd by state that county had to pay also
Others	191,679	No individual dept. with a greater than 5% budget variance.
	55,153	Judicial Total
<u>Public Safety</u>		
Sheriff	(87,042)	OT, Training & Travel running underbudget; AXON pmt. to be made in Aug. (\$247K)
Correctional Center	(360,785)	6 mo C/Sv. Meals encumb & items at this pt of yr.(EX: OT, S/O bonuses, & uniforms)
EMS	(104,167)	Entire year is encumbered.
Coroner	12,652	Salaries & some other line items running underbudget & will be used later in the year
Emerg. Management	(90,810)	Large Motorola payment made at first of the year.
Others	262,855	No individual dept. with a greater than 5% budget variance.
	(367,297)	Public Safety Total
<u>Public Works</u>		
	289,847	Some line items are tracking lower than original budget.
	289,847	Public Works Total
<u>Health & Welfare</u>		
Fam Supp Council / G'house Advocacy	(34,917)	Greenhouse pmts encumbered for full yr.
Family & Children Services	(33,333)	Pmts encumbered for full yr.
Health Department	(104,167)	Pmts encumbered for full yr.
Indigent Funeral Expense	6,933	Fewer Indigent funerals so far
Others	179,793	No individual dept. with a greater than 5% budget variance.
	14,309	Health & Welfare Total
<u>Culture & Recreation</u>		
Parks & Rec	(151,145)	250th Celebration and Dog Park Grant
Library	(264,167)	Pmts encumbered for full yr.
Others	268,458	No individual dept. with a greater than 5% budget variance.
	(146,854)	Culture & Recreation Total
<u>Housing & Development</u>		
County Extension Service	16,832	Vacancies in the department & some line items are tracking lower than budget.
Dalton/Whitfield CDC	(33,333)	Pmts encumbered for full yr.
County Planner	(20,000)	Pmts encumbered for full yr.
MPO	179,221	Encumbered 1/2 of Consultant Fees & some line items are tracking lower than budget.
Belleve Greater Dalton/Thrive	(28,750)	Pmts encumbered for full yr.
NW GA Trade & Conv Center Authority	(264,412)	Pmts encumbered for full yr.
Others	255,366	No individual dept. with a greater than 5% budget variance.
	104,924	Housing & Development Total
<u>Debt Service</u>		
	-	2025 TAN
	-	Debt Service Total
<u>Other Uses</u>		
	(3,436)	
	(3,436)	Other Uses Total
	109,896	Total Favorable (Unfavorable) Variance

* Please note that whenever possible we adjust projections based on spending patterns.
However, standard practice is to assume 1/12th of the budget will be expended each month, except for payroll.

Whitfield County, Georgia
General Fund Schedule of Revenues - Unaudited
Year to Date Totals as of July 31, 2026
With Comparative Totals for 2025

	2026						2025	
	Original Budget	Current Month	Year to Date Projected	Year to Date Actual	Variance Favorable (Unfavorable)	Percentage Collected	Current Month	Year to Date Actual
TAXES								
Property taxes - M&O	\$ 21,748,237		\$ (94,741)	\$ (94,741)	\$ -	-0.44%		
Property tax-M&O Delinquent	1,730,000	124,018	2,572,814	2,572,814	\$ -	148.72%	40,548	1,244,517
Property tax-Title Ad Valorem Tax	5,880,000	517,510	3,430,000	3,486,142	56,142	59.29%	490,477	3,420,681
Property taxes - Other (Timber, Vehicle, Misc)	820,981	87,978	557,490	557,490	-	67.91%	41,460	551,882
Real Estate transfer taxes	135,000	10,669	78,750	98,841	20,091	73.22%	18,242	81,899
Franchise taxes	356,386	54,055	89,097	160,179	71,083	44.95%	113,123	178,193
Local Option Sales Taxes	15,744,093	1,355,603	9,184,054	9,279,409	95,355	58.94%	1,273,625	8,892,743
Alcoholic beverage taxes	400,000	31,528	233,333	209,208	(24,125)	52.30%	34,838	221,105
Insurance premium taxes	-	-	-	-	-	N/A	-	-
Financial institutional licenses	140,500	-	140,500	133,187	(7,313)	94.79%	-	140,522
Penalties, Interest, Fees - Tax Collection	141,600	40,750	82,600	163,968	81,368	115.80%	8,811	110,425
Total - Taxes	47,096,797	2,202,111	16,273,898	16,566,496	292,600	35.18%	2,021,121	14,841,967
LICENSES AND PERMITS								
Alcoholic beverage licenses	90,000	-	90,000	90,950	950	101.06%	1,500	87,350
Zoning/Planning	80,000	6,035	48,667	43,175	(3,492)	53.97%	3,013	46,987
Land Disturbing Permit	10,000	194	5,833	7,213	1,379	72.13%	411	6,776
Raffle, Solicitation, Pawn Shop & Recycler Permits	1,300	-	758	1,075	317	82.69%	-	1,275
Building Permits	850,000	60,369	495,833	520,557	24,723	61.24%	60,352	397,709
Total - Licenses and permits	1,031,300	66,598	639,092	662,970	23,878	64.28%	65,276	540,096
INTERGOVERNMENTAL REVENUE								
Federal/State MPO	469,232	-	67,978	67,978	-	14.49%	-	2,445
Federal - Indirect (CJCC & Other)	213,090	-	120,381	120,381	-	56.49%	25,487	212,871
Federal - Indirect (SCAAP)	-	-	-	-	-	N/A	-	12,271
U.S. Treasury (Payment in lieu of property taxes)	493,000	133,625	441,613	441,613	-	89.58%	114,920	377,596
DW Solid Waste Authority	2,000,000	-	2,000,000	2,000,000	-	100.00%	-	-
Dalton Utilities	-	-	-	-	-	N/A	-	-
State Grant - LMIG	-	-	-	1,555,660	1,555,660	N/A	-	-
State Grant - Homeowner Tax Relief	-	-	-	-	-	N/A	-	-
Other	1,495,000	139,384	200,977	200,977	-	13.44%	-	4,252,867
Total - Intergovernmental Revenue	4,670,322	273,010	2,830,950	4,386,610	1,555,660	93.93%	140,407	4,858,049
CHARGES FOR SERVICES								
Clerk of Court	108,000	10,854	63,000	76,818	13,818	70.94%	12,017	81,154
Probate Court	250,000	20,971	145,833	145,362	(471)	58.14%	22,330	147,618
Magistrate Court	295,000	19,895	172,083	149,950	(22,133)	50.83%	21,275	142,507
Bond Administration	50,000	3,300	29,167	23,860	(5,307)	47.72%	4,040	27,680
Recording Fees	294,000	28,153	171,500	180,468	8,968	61.38%	25,439	166,872
Motor Vehicle Tag Collection Fees	280,000	23,931	163,333	161,791	(1,543)	57.78%	24,025	163,292
Board of Elections and Registrar	10,600	-	3,876	3,876	-	36.57%	-	-
Commission on Tax Collections	1,300,000	34,584	981,906	981,906	-	75.53%	28,675	848,941
Sheriff - Fingerprinting Fees	1,500	4	875	1,380	505	92.00%	42	1,140
City of Dalton	95,500	8,122	55,708	38,348	(17,360)	40.16%	7,972	39,208
City of Dalton - Inmate Housing	166,000	20,084	96,833	74,983	(21,850)	45.17%	795	72,465
State of Georgia - Inmate Housing	70,000	21,435	40,833	126,795	85,962	181.14%	45,810	57,960
City of T. Hill, Verrell, & Cohutta - Inmate Housing	36,300	2,474	21,175	23,999	2,824	66.11%	663	18,178
Federal - Inmate Housing	-	-	-	-	-	N/A	-	-
Jail Construction - Staffing	152,000	7,688	88,667	69,795	(18,872)	45.92%	11,984	75,142
Public Works - Driveways/Jobs	150,000	11,871	123,103	123,103	-	82.07%	15,053	84,815
State D.O.T.	-	-	-	-	-	N/A	-	-
Animal Control	13,000	1,005	7,583	8,210	627	63.15%	715	8,230
Clerk of Superior Court	8,500	695	4,958	4,510	(449)	53.06%	667	4,535
Recreation Activity Fees	425,000	118,896	247,917	288,543	40,626	67.89%	94,120	266,603
Other	288,450	18,250	156,596	132,503	(24,093)	49.36%	36,963	171,645
Total - Charges for services	3,973,850	352,210	2,574,947	2,615,999	41,052	65.83%	352,582	2,377,983
FINES AND FORFEITURES								
Clerk of Superior Court	341,000	50,063	198,917	251,872	52,955	73.86%	29,708	226,240
Magistrate Court	55,000	2,260	32,083	18,877	(13,206)	34.32%	2,782	19,240
Probate Court	500,000	41,719	291,667	251,514	(40,153)	50.30%	44,462	271,360
Juvenile Court	17,000	539	9,917	5,754	(4,163)	33.85%	755	6,486
Total - Fines and forfeitures	913,000	94,580	532,583	528,017	(4,566)	57.83%	77,707	523,326
INVESTMENT INCOME								
Interest	468,000	23,172	273,000	287,349	14,349	61.40%	27,927	357,240
Total - Investment income	468,000	23,172	273,000	287,349	14,349	61.40%	27,927	357,240
CONTRIBUTIONS - PRIVATE SOURCES								
Contributions - Private	13,000	30,130	30,130	55,945	25,815	430.35%	2,000	157,850
Total - Contributions - Private Sources	13,000	30,130	30,130	55,945	25,815	430.35%	2,000	157,850
MISCELLANEOUS REVENUE								
Contributions - Friends of Greenhouse	-	-	-	-	-	N/A	-	-
Rent U.S. Government	5,460	-	3,185	2,730	(455)	50.00%	-	2,730
W.C. Board of Education	1,551,000	-	686,505	686,505	-	44.26%	19,051	315,228
Murray County Board of Comm.	844,078	48,471	297,427	297,427	-	48.18%	116,913	274,783
State of Georgia - Other	143,000	1,500	28,000	28,000	-	19.58%	25,000	53,000
Other Not Classified	514,500	34,933	300,125	213,505	(86,620)	41.50%	25,225	352,042
Total - Miscellaneous Revenue	2,858,038	82,905	1,315,243	1,228,168	(87,075)	42.97%	188,190	997,783
OTHER FINANCING SOURCES								
Sale of General Fixed Assets	155,000	-	14,086	14,086	-	9.09%	(123)	37,300
Operating Transfer In	1,050,000	1,164,597	1,664,597	1,664,597	-	158.53%	12,500	87,500
Total - Other Financing Sources	1,205,000	1,164,597	1,678,683	1,678,683	-	139.31%	12,377	124,800
TOTAL REVENUES	\$ 62,229,307	\$ 4,289,312	\$ 26,148,524	\$ 28,010,238	\$ 1,861,714	45.01%	\$ 2,885,587	\$ 24,779,084

General Fund Revenue by Source
July 2026
Projected Budget vs. Actual - with 2025 Comparisons



	2026 Projected Budget	2026 Actual	%	2025 Actual
Accrued Taxes	\$16,273,896	\$16,566,496	101.8%	\$14,841,967
Licenses and Permits	639,092	662,970	103.7%	540,096
Intergovernmental Revenue	2,830,950	4,386,610	155.0%	4,858,049
Charges for Services	2,574,947	2,615,999	101.6%	2,377,983
Fines and Forfeitures	532,583	528,017	99.1%	523,326
Investment Income	273,000	287,349	105.3%	357,240
Contributions - Private	30,130	55,945	185.7%	157,850
Miscellaneous	1,315,243	1,228,168	93.4%	997,783
Other Financing Sources	1,678,683	1,678,683	100.0%	124,800
	\$26,148,524	\$28,010,238	107.1%	\$24,779,094

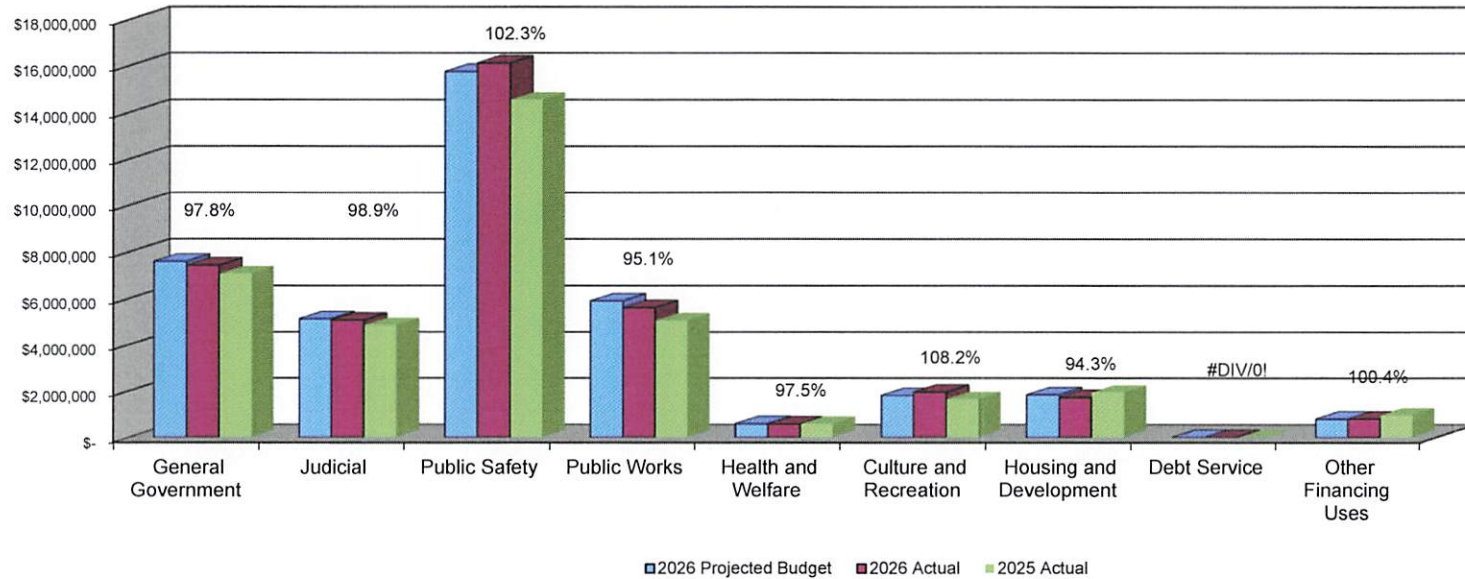
Whitfield County, Georgia
General Fund Schedule of Expenditures by Department - Unaudited
Year to Date Totals as of July 31, 2026
With Comparative Totals for 2025

		2026						2025		
		Original Budget	Current Month	Year to Date Projected	Year to Date Actual	Encumbered	Available Budget	Percentage Used	Current Month	Year to Date Actual
GENERAL GOVERNMENT										
310	Board of Commissioners	\$ 1,005,117	\$ 86,618	\$ 583,449	\$ 658,383		\$ 346,734	65.50%	\$ 119,591	\$ 745,591
400	Board of Elections and Registrar	856,251	38,322	\$ 482,171	\$ 446,735	153	409,363	52.19%	46,200	324,930
510	Finance & Accounting	759,460	56,748	\$ 438,875	\$ 418,907	89	340,464	55.17%	48,029	403,658
520	General Administration (Contingency)	-		-			-	N/A		
530	Law	180,000	5,873	105,000	\$ 76,716		103,284	42.62%	13,528	105,147
535	Information Technologies	1,302,593	91,616	\$ 755,790	\$ 752,086	142,732	407,776	68.70%	95,962	808,799
540	Human Resources	543,229	29,623	\$ 314,629	\$ 350,316	20,598	172,316	68.28%	50,182	311,199
545	Tax Commissioner	2,214,888	152,114	\$ 1,282,889	\$ 1,224,047	440	990,401	55.28%	151,911	1,201,308
550	Tax Assessor	2,324,571	209,581	\$ 1,346,008	\$ 1,253,484	2,572	1,068,515	54.03%	185,756	1,186,240
551	Board of Equalization	164,622	2,216	\$ 95,364	\$ 59,038	461	105,122	36.14%	7,742	20,869
555	Risk Management	880,000	59,614	513,333	\$ 470,356	1,020	408,624	53.57%	65,170	522,308
560	Audit	90,000	(998)	70,013	\$ 70,013		19,987	77.79%	14,002	83,013
565	Buildings & Grounds	2,474,756	207,214	\$ 1,435,449	\$ 1,335,342	57,085	1,082,329	56.27%	179,596	1,233,235
570	Communications	204,432	31,640	\$ 118,370	\$ 102,684		101,748	50.23%	11,428	78,258
595	General Administration Fees	70,000	145	40,833	\$ 34,427		35,573	49.18%	5,640	38,648
	Indirect Cost Allocation	-		-			-	N/A		
1	Total - General Government	13,069,919	970,325	7,582,175	7,252,535	225,150	5,592,234	57.21%	994,736	7,063,202
JUDICIAL										
100	Judicial Administration	787,618	65,591	\$ 456,821	446,097	44,066	297,455	62.23%	58,271	423,782
151	Judge Morris	47,100	6,191	\$ 27,475	30,878	178	16,044	65.94%	7,717	41,308
152	Judge Poston	47,100	2,790	\$ 27,475	23,960	79	23,062	51.04%	7,918	29,158
153	Judge Wilbanks	45,450	4,752	\$ 26,513	23,109	2,870	19,471	57.16%	4,550	34,127
154	Judge Minter	46,400	5,151	\$ 27,067	29,760	1,050	15,590	66.40%	5,813	42,535
155	Drug Court						-	N/A		
180	Clerk of Superior Court	1,252,436	99,050	\$ 725,059	714,919	3,657	533,860	57.37%	97,639	667,105
200	District Attorney	1,804,501	156,367	\$ 1,044,207	1,036,599	71,856	696,046	61.43%	135,199	945,221
400	Magistrate Court	1,306,681	101,034	\$ 756,142	739,286	10,853	556,542	57.41%	100,340	722,862
450	Probate Court	752,592	54,363	\$ 435,622	403,238	4,295	345,059	54.15%	60,251	403,381
600	Juvenile Court	1,342,013	107,415	\$ 777,176	764,122	63,903	513,988	61.70%	101,856	731,993
800	Public Defender	1,401,024	112,385	\$ 809,884	824,239	1,822	574,964	58.96%	89,909	806,734
2	Total - Judicial	8,832,915	715,089	5,113,440	5,036,207	204,629	3,592,079	59.33%	669,465	4,848,206
PUBLIC SAFETY										
300	Sheriff	12,608,185	1,130,466	\$ 7,296,993	7,089,121	294,914	5,224,150	58.57%	966,637	6,470,482
326	Correctional Facility	13,348,252	1,185,553	\$ 7,735,192	7,731,774	364,202	5,252,276	60.65%	1,106,022	7,328,669
500	Fire Department						-	N/A		
600	Emergency Medical Services	250,000	20,833	\$ 145,833	145,833	104,167	-	100.00%	20,833	145,833
700	Coroner	139,676	6,468	\$ 81,045	68,393		71,283	48.97%	8,648	79,926
910	Animal Shelter	447,469	30,005	\$ 259,229	236,492	815	210,163	53.03%	33,078	224,819
920	Emergency Management	400,646	25,607	\$ 232,929	303,009	20,729	76,908	80.80%	21,568	296,344
290	American Red Cross	-		-			-	N/A		
3	Total - Public Safety	27,194,228	2,398,932	15,751,220	15,574,623	784,826	10,834,779	60.16%	2,156,785	14,546,072
PUBLIC WORKS										
200	Public Works	9,113,910	559,621	(3,225,592.59)	5,366,404	357,637	3,389,869	62.81%	620,899	5,049,569
530	Solid Waste Disposal	-		-			-	N/A		
970	Payments to Varnell/Cohutta/Tunnel H	-		-			-	N/A		
4	Total - Public Works	9,113,910	559,621	5,888,317	5,366,404	357,637	3,389,869	62.81%	620,899	5,049,569
HEALTH AND WELFARE										
000	Health Department	250,000	20,833	145,833	145,833	104,167	-	100.00%	20,833	145,833
110	Family Supp Council / Greenhouse Ad	69,800	4,983	34,883	44,883	24,917	-	100.00%	1,650	61,550
441	Family and Children Services	80,000	6,667	46,667	46,667	33,333	-	100.00%	6,667	46,667
446	GA Dept. of Veterans Service	984		984	984		-	100.00%		600
452	Indigent Funeral Expense	16,000		9,333	2,400		13,600	15.00%	700	7,700
520	Senior Citizens	586,290	46,976	\$ 339,738	321,962	400	263,928	54.98%	43,253	320,587
590	Payments to Others	5,000		5,000	5,000		-	N/A		
5	Total - Health and Welfare	1,008,074	79,459	582,438	567,729	162,817	277,528	72.47%	73,103	582,937
CULTURE AND RECREATION										
120	Parks & Recreation Department	2,460,686	207,712	\$ 1,426,718	1,545,078	32,785	882,823	64.12%	163,883	1,278,472
223	Capital_Property	-		-			-	#DIV/0!		
510	Dalton Regional Library	634,000	52,833	369,833	369,833	264,167	-	100.00%	52,833	369,833
6	Total - Culture and Recreation	3,094,686	260,545	1,796,552	1,914,911	296,952	882,823	71.47%	216,716	1,648,305
HOUSING AND DEVELOPMENT										
130	County Extension Service	188,625	8,464	\$ 109,742	65,421	27,490	95,715	49.26%	6,004	55,741
140	State Forestry Service	7,700	638	4,492	4,466		3,234	58.00%		3,828
220	Inspection & Enforcement	609,935	45,965	\$ 352,924	340,684		269,251	55.86%	43,168	323,942
310	Dalton/Whitfield CDC	80,000	6,667	46,667	46,667	33,333	-	0.00%	6,667	46,667
324	Condemned Hsng Demo	15,000		6,245	6,245		8,755	41.64%		
410	County Planner	48,000		28,000	24,000	24,000	-	100.00%	4,000	28,000
420	MPO	549,486	30,253	\$ 358,870	177,454	2,194	369,838	32.69%	40,610	326,303
430	Community Development	222,023	17,303	\$ 128,405	126,390		95,633	56.93%	16,730	142,950
450	County Engineer Office	837,410	59,423	\$ 484,343	453,095		384,315	54.11%	55,851	446,344
520	Believe Greater Dalton/Thrive	69,000	5,750	40,250	40,250	28,750	-	100.00%	5,750	40,250
540S	NW GA Trade & Conv. Center Authori	818,014	70,704	267,950	340,969	191,393	285,652	65.08%	194,215	519,523
7	Total - Housing and Development	3,445,193	245,166	1,827,887	1,625,641	307,160	1,512,392	56.10%	372,995	1,933,548
						1,722,965				

Whitfield County, Georgia
General Fund Schedule of Expenditures by Department - Unaudited
Year to Date Totals as of July 31, 2026
With Comparative Totals for 2025

		2026						2025		
		Original Budget	Current Month	Year to Date Projected	Year to Date Actual	Encumbered	Available Budget	Percentage Used	Current Month	Year to Date Actual
DEBT SERVICE										
	Loan Payment	-					-	#DIV/0!		
	Interest Expense			-			-	#DIV/0!		
	TAN's	-		-			-	0.00%		
8	Total - Debt Service	-	-	-	-	-	-	#DIV/0!	-	-
OTHER FINANCING USES										
	Greenhouse	-					-	N/A		
Use	E-911 Center	1,144,549	95,379	667,654	667,654		476,895	58.33%	116,621	816,350
Detail	Whitfield Transit Grant	-		-			-	#DIV/0!		
	Capital Projects	162,500	14,033	94,792	98,228		64,273	60.45%	15,473	108,313
	JDA Project Fund	51,956	4,330	30,308	30,308		21,648	58.33%	4,330	30,308
	Fund 211, 237, 252	-		-			-	N/A		
9	Total - Other Financing Uses	1,359,005	113,741	792,754	796,189	-	562,816	58.58%	136,424	954,971
TOTAL EXPENDITURES		\$67,117,930	\$5,342,878	\$ 39,334,783	\$38,134,238	\$2,339,171	\$26,644,521	60.30%	\$5,241,124	\$36,626,811

General Fund Expenditures by Category
July 2026
Projected Budget vs. Actual - with 2025 Comparisons



	2026 Projected Budget	2026 Actual	%	2025 Actual
General Government	\$ 7,582,175	\$ 7,418,923	97.8%	\$ 7,063,202
Judicial	5,113,440	5,058,289	98.9%	4,848,206
Public Safety	15,751,220	16,118,515	102.3%	14,546,072
Public Works	5,888,317	5,598,470	95.1%	5,049,569
Health and Welfare	582,438	568,129	97.5%	582,937
Culture and Recreation	1,796,552	1,943,405	108.2%	1,648,305
Housing and Development	1,827,887	1,722,965	94.3%	1,933,548
Debt Service	-	-	#DIV/0!	-
Other Financing Uses	792,754	796,189	100.4%	954,971
	39,334,783	39,224,885	99.7%	36,626,811

RESOLUTION OF THE BOARD OF COMMISSIONERS OF WHITFIELD COUNTY, GEORGIA TO REGULATE AND PROVIDE FOR THE ISSUANCE OF THE WHITFIELD COUNTY GENERAL OBLIGATION TAX ANTICIPATION NOTE, SERIES 2026, IN THE PRINCIPAL AMOUNT OF \$7,450,000; TO PROVIDE FOR THE LEVY OF TAXES TO PAY SAID NOTE AND THE INTEREST THEREON; AND FOR OTHER PURPOSES.

WHEREAS, Article IX, Section V, Paragraph V of the Constitution of the State of Georgia of 1983 (the “**Constitutional Provision**”) provides that the governing authority of any county of the State of Georgia may incur debt by obtaining temporary loans in each year to pay expenses, provided that (i) the aggregate amount of all such loans shall not exceed 75% of the total gross income from taxes collected in the last preceding year, (ii) such loans shall be payable on or before December 31 of the calendar year in which such loans are made, (iii) no such loans may be obtained when there is a loan then unpaid obtained in any prior year, and (iv) the aggregate of any such temporary loans or other obligations for current expenses shall not exceed the total anticipated revenue for such calendar year; and

WHEREAS, during calendar year 2025 the gross income of Whitfield County (the “**County**”) from taxes collected aggregated not less than \$27,338,759 and, pursuant to the Constitutional Provision, the County is authorized to borrow not more than 75% of said amount, i.e., \$20,504,069 during calendar year 2026; and

WHEREAS, as of the date of the issuance of the temporary loan contemplated herein, the County will certify that no temporary loans of the County made in prior years remain unpaid; and

WHEREAS, the aggregate amount of any temporary loans for current expenses of the County for calendar year 2026 shall not exceed the total anticipated revenue of the County for 2026; and

WHEREAS, it is anticipated that deficits will be incurred by the County in cash flow during calendar year 2026 and that up to \$7,450,000 will need to be borrowed on a temporary basis to cover such deficits; and

WHEREAS, the County has determined that the most feasible method of obtaining this temporary loan is by the issuance and sale of the County’s tax anticipation note for such purpose, to be due and payable on or before December 31, 2026; and

WHEREAS, the County, with the assistance of First Tryon Advisors, as municipal advisor to the County, has requested bids from financial institutions and has chosen Truist Commercial Equity, Inc. (the “**Purchaser**”) to purchase the County’s tax anticipation note and provide the funds necessary for such temporary borrowing.

NOW, THEREFORE, BE IT RESOLVED by the Board of Commissioners of Whitfield County (the “**Board of Commissioners**”), as follows:

1. Authorization and Designation. There is hereby authorized to be issued pursuant to the Constitutional Provision, the general laws of Georgia including the Official Code of Georgia Annotated § 36-80-2, and this resolution, a general obligation tax anticipation note of the County, payable as herein provided, in the principal amount of \$7,450,000 and designated WHITFIELD COUNTY GENERAL OBLIGATION TAX ANTICIPATION NOTE, SERIES 2026 (the “**Note**”). The provisions of the term sheet submitted by the Purchaser dated September 2, 2026, for the purchase of the Note is hereby accepted and approved by the County. A copy of said term sheet is attached hereto Exhibit A and incorporated herein by reference.

2. Date; Interest Rate; Maturity; Denomination. The Note shall be dated the date of issuance and delivery thereof, which is anticipated to be on September 16, 2026, and shall bear interest on the outstanding principal balance of the Note at a fixed interest rate equal to 3.48% (calculated on the basis of a 360-day year comprised of twelve 30-day months), payable at maturity, December 31, 2026. The full principal amount of the Note, together with any accrued interest thereon, shall be due and payable on December 31, 2026, in lawful money of the United States of America as set forth in the Note.

3. Delivery of Note. The Note shall be sold to the Purchaser, for a purchase price of 100% of the principal amount of the Note. The properly executed Note shall be delivered to the Purchaser on the date the Note is issued, as herein provided.

4. Execution and Form of Note. The Note shall be executed for and on behalf of the County by the manual signature of the Chairman or Vice Chairman of the Board of Commissioners and attested by manual signature of the County Clerk. The County Clerk is hereby authorized to impress the official seal of the County upon the Note, and such Note shall not be valid or obligatory for any purpose until such official seal is impressed thereon. The Note shall be issued substantially in the following form, with such variations, omissions, and insertions as are permitted or required by this resolution:

[Remainder of Page Intentionally Left Blank]

[FORM OF NOTE]

This Note shall not be sold or transferred if such sale or transfer would void the exemption, contained in U.S. Securities and Exchange Commission Rule 15c2-12(d)(1)(i), from the disclosure requirements of U.S. Securities and Exchange Commission Rule 15c2-12(b)(5) or any similar rules or statutes in effect at the time of such sale or transfer.

UNITED STATES OF AMERICA
STATE OF GEORGIA

WHITFIELD COUNTY GENERAL OBLIGATION
TAX ANTICIPATION NOTE, SERIES 2026

Principal Amount: \$7,450,000
Maturity Date: December 31, 2026
Interest Rate: 3.48%
Note Date: September 16, 2026
Registered Owner: Truist Commercial Equity, Inc.

Whitfield County, a political subdivision of the State of Georgia (the “County”), for value received, hereby promises to pay to the Registered Owner named above or to the Registered Owner’s registered assigns, on December 31, 2026, the principal sum set forth above, together all accrued interest on said sum from the date hereof at the rate of interest equal to 3.48% per annum, computed on the basis of a 360-day year comprised of twelve 30-day months.

Both the principal of and interest on this Note are payable in lawful money of the United States of America by wire transfer to such account as the Holder of this Note shall designate to the County in writing not less than two business days prior to the Maturity Date hereof. Upon payment in full of the principal and interest on this Note, it shall be marked “cancelled” and, upon request, a certificate of cancellation shall be sent to the office of the County Clerk of Whitfield County.

This Note is issued under authority of Article IX, Section V, Paragraph V of the Constitution of the State of Georgia, the laws of the State of Georgia, and a resolution duly adopted on September 14, 2026 (the “Resolution”), by the Board of Commissioners of Whitfield County, Georgia.

The indebtedness evidenced by this Note is a general obligation of the County and the full faith, credit, and taxing power of the County is hereby pledged irrevocably to secure the payment of the principal of and interest on this Note.

This Note is not prepayable prior to maturity unless the County simultaneously with such prepayment pays a fee (the “Make Whole Price”) equal to the present value of the difference between (i) the amount that would have been realized by the Registered Owner on the prepaid amount for the remaining term of this Note at the rate for fixed rate payers in U.S. Dollar interest rate swaps as quoted by Bloomberg (the “Swap Rate”) for a term corresponding to the term of this

Note, interpolated to the nearest month, if necessary, that was in effect three Business Days prior to the date of issuance of this Note and (ii) the amount that would be realized by the Registered Owner by reinvesting such prepaid funds for the remaining term of Note at the Swap Rate for fixed rate payers in U.S. Dollar interest rate swaps, interpolated to the nearest month, that was in effect three Business Days prior to the Note prepayment date; both discounted at the same interest rate utilized in determining the applicable amount in (ii). Provided that, should the present value have no value or a negative value, the County may repay at par. Provided, further, that if Bloomberg no longer releases rates for fixed-rate payers in U.S. Dollar interest rate swaps, the Registered Owner may substitute the Bloomberg index for rates for fixed-payers in U.S. Dollar interest rate swaps with another similar index as determined by the Registered Owner. Registered Owner shall provide the County with a written statement explaining the calculation of the premium due, which statement shall, in the absence of manifest error, be conclusive and binding.

The County has designated this Note as a “qualified tax-exempt obligation” in accordance with § 265(b)(3) of the Internal Revenue Code of 1986, as amended.

This Note is issued with the intent that the laws of the State of Georgia shall govern its construction.

It is hereby certified and recited that all acts, conditions, and things required by the Constitution or statutes of the State of Georgia to exist, happen or be performed precedent to or in the issuance of this Note, do exist, have happened, and have been performed in due and legal time, form and manner as required by law and that provision has been duly made for the collection of an *ad valorem* tax to the extent necessary to produce money which, together with any other money lawfully available for such purpose, in the aggregate will be sufficient to pay the principal of and interest on this Note at maturity.

IN WITNESS WHEREOF, Whitfield County, Georgia has caused this Note to be manually executed by the Chairman of its Board of Commissioners and its seal to be impressed hereon and manually attested by its County Clerk as of the date first above written.

WHITFIELD COUNTY, GEORGIA

(S E A L)

By: _____ (Form)
Chairman

Attest: _____ (Form)
County Clerk

[END OF FORM OF NOTE]

5. Designation of Paying Agent. The County Clerk of the County is hereby designated as the Paying Agent for the Note.

6. Note as a General Obligation of the County. The Note shall be a general obligation of the County, and the full faith, credit, and taxing power of the County is hereby irrevocably pledged to the payment thereof. As security for the repayment of the Note, the County irrevocably pledges to levy and collect, to the extent necessary, in calendar year 2026, and there is hereby so levied, *ad valorem* property taxes on all the taxable property subject to taxation for general obligation purposes located within the boundaries of the County as the same now exist, and within any extensions thereof, sufficient in amount to pay the principal of and interest on the Note. Those amounts are irrevocably pledged and appropriated to the payment of the principal and interest, when due on the Note, and the provisions to meet the requirements of this resolution shall hereafter be made in time and manner so that the Note, including both principal and interest, shall be fully paid at maturity. It is expressly provided, however, that nothing herein contained shall be construed as preventing the County from paying the principal of and interest on the Note from any other funds lawfully available to it for such purpose.

7. Application and Investment of Note Proceeds.

(a) Proceeds of the Note shall be applied solely to pay current expenses of the County in calendar year 2026. No proceeds of the Note shall be expended except as are appropriated by the Board of Commissioners of the County.

(b) Proceeds from the sale of the Note not immediately needed for the payment of current expenses of the County shall be invested and reinvested in such securities as authorized by Georgia law.

8. Non-Arbitrage Certificate.

(a) In order to maintain the exclusion from federal gross income of interest on the Note, the County covenants to comply with the applicable requirements of the Internal Revenue Code of 1986, as amended (the “**Code**”), and the applicable Treasury Regulations thereunder. In furtherance of this covenant, for the benefit of the registered owner of the Note, the County agrees to comply with the provisions of a Non-Arbitrage Certificate to be executed by the County and delivered concurrently with the issuance and delivery of the Note.

(b) The Note is hereby designated as a “qualified tax-exempt obligation” in accordance with § 265(b)(3) of the Code. The reasonably anticipated amount of qualified tax-exempt obligations (including the Note) which the County, together with any subordinate entities of the County and any entities which issue obligations on behalf of the County, will issue during the year in which the Note is issued does not exceed \$10,000,000.

9. General Authorization; Ratification of Prior Action. The proper officers and agents of the County hereby are authorized, empowered, and directed to do all such acts and things and to execute all such documents, including the Note, as may be necessary to carry out and comply with the provisions of this resolution and are further authorized to take any and all further actions

and execute and deliver any and all other documents as may be necessary in the issuance of the Note. All actions heretofore taken and all documents heretofore executed in connection with the issuance of the Note are ratified and approved.

10. Contract. The provisions, terms, and conditions of this resolution will constitute a contract by and between the County and the Registered Owner of the Note, and, after the issuance of the Note this resolution shall not be repealed or amended in any respect which will adversely affect the rights and interest of the Registered Owner of the Note, nor shall the County adopt any resolution in any way adversely affecting the rights of such owner so long as any principal of the Note or any interest thereon shall remain unpaid.

11. Repeal of Conflicting Resolutions. Any and all resolutions or parts of resolutions in conflict herewith shall be and the same are hereby repealed.

NOW RESOLVED in open meeting this September 14, 2026.

WHITFIELD COUNTY, GEORGIA

By: _____
Chairman
Board of Commissioners

Attest: _____
County Clerk

PETITION TO CLOSE ROAD

Comes now, VHCS Holdings, LLC as Petitioner, and requests that the Board of Commissioners of Whitfield County, Georgia declare that the portion of Mallard Road described in the within Petition abandoned so that said road will no longer be a part of the County Road System and the rights of the public in and to said sections of road, as a public road, will cease, to-wit:

1. Petitioner is the owner of real estate contiguous and abutting both sides of said public road which is requested to be closed. The county acquired title to the Property by maintenance of the roadway once known as a part of the Old Dixie Highway.

2. The road which Petitioners request the Board of Commissioners to declare abandoned has been abandoned in fact for many years, and has never been expressly dedicated to Whitfield County, Georgia. The portions of the road which Petitioner requests the Board of Commissioners to declare abandoned has not been maintained by Whitfield County for many years.

3. The road which Petitioner requests the Board of Commissioners to declare abandoned is not used by the public and no substantial purpose is served by the road.

4. The Board of Commissioners of Whitfield County has authority pursuant to O.C.G.A. § 32-7-2 (b) to declare said road abandoned for public purposes and to certify upon its minutes accompanied by a plat of the sketch of the road after notice to property owners located thereon that said road is no longer a part of the County road system and the rights of the public in and to said section of road as public road shall cease.

5. No part of said road which Petitioner requests to be closed is located within any municipality nor is said road a part of the State Highway System.

6. Petitioner shows that the aforesaid road and the general location of said road is shown in yellow by the sketch attached hereto and marked as Exhibit "A", for reference thereto.

WHEREFORE, Petitioner requests that any notice as required by law issued to property owners located on said road and that the public be notified of said petition; that the Board of Commissioners of Whitfield County proceed to declare said road no longer a part of the County road system and to certify the abandonment thereon upon its minutes accompanied by a plat or sketch of the section of the road to be closed; that the rights of the public in and to said section of road as a public road cease; and that a deed for said road to be delivered to the adjoining property owners.

This _____ day of _____, 2026.

J. Tom Minor, IV as Attorney for Petitioner

Georgia, Whitfield County

The undersigned, being the person owning or having any interest in the lands through which and Mallard Road passes, as set forth in a Notice or Hearing pending before the Board of Commissioners of Whitfield County, Georgia, hereby acknowledges personal service of the Petition of VHCS Holdings, LLC, and hereby waives any and all further service and notice, and offer no objection to said portions of said road being discontinued or abandoned.

This _____ day of _____, 2026.

VHCS Holdings, LLC

By: _____

Title:

ORDER DIRECTING SERVICE AND PUBLICATION

The Board of Commissioners of Whitfield County, Georgia, having before a Petition by VHCS Holdings, LLC, to close a portion of Mallard Road for the discontinuance and abandonment thereof for public use as set forth in said Petition;

IT IS HEREBY ORDERED that notice of said Petition of Mallard Road be given to the public by publication once a week for two (2) consecutive weeks in the Daily Citizen, the legal organ for publication of Sheriff's notices in Whitfield County, Georgia, said Citation notifying all persons that at the regular meeting of the Board of Commissioners of Whitfield County, Georgia, on the ____ day of _____, 2026, said Petition will be considered and said road as petitioned will be declared discontinued and abandoned and shall cease to be a part of the County road system and the rights of the public in and to the section of road as a public road shall cease unless good cause shall be shown or valid objection thereto be made.

This _____ day of _____, 2026.

**Board of Commissioners of Whitfield County,
Georgia**

By: _____
Chairman

CITATION

Georgia, Whitfield County

TO: ALL PERSONS WHO IT MAY CONCERN:

Notice is hereby given that VHCS Holdings, LLC has applied to the Board of Commissioners of Whitfield County, Georgia, for the discontinuance and abandonment of a portion of Mallard Road, lying and being in Land Lot No. 146 in the 12th District and 3rd Section of Whitfield County, Georgia, and now running through the lands of VHCS Holdings, LLC for a more full and complete description of said road sought to be abandoned and closed to the public, the public is referred to said Petitioner and legal description and plat attached thereto which is available for inspection during regular business hours at the offices of the Board of Commissioners of Whitfield County, Georgia.

Said Petition will be heard on the _____ day of _____, 2026. Unless good cause is shown or valid objection made thereto, said road will be decreed discontinued and abandoned as a portion or section of the County road system and so certified upon the minutes of the Board of Commissioners of Whitfield County, Georgia, declaring that said section of road shall no longer be a part of the County road system and that the rights of the public in and to said road, as a public road, shall cease.

This _____ day of _____, 2026.

**Board of Commissioners of Whitfield County,
Georgia**

By: _____
Chairman

Georgia, Whitfield County

IN RE: Closing of a portion of Mallard Road

WHEREAS, the above matter coming on for regular hearing by virtue of a Petition of VHCS Holdings, LLC praying that a portion of Mallard Road be discontinued and abandoned; and

WHEREAS, it appearing that notice to all residents and persons owning or having an interest in the lands located in the area through which said road passes has been given personal notice of this Petition to close said road and notice of this hearing or to have acknowledged service thereof; and

WHEREAS, it appearing that the property owners or residents of adjacent property have offered no objection to the closing of the portion of the aforesaid road which are identified and shown marked in yellow upon a sketch of the area attached to this resolution and made a part hereof by reference thereto; and

WHEREAS, it further appearing that the portion of Mallard Road has ceased to be of use to the public to the extent that no substantial public purpose is served by the said road and any maintenance thereof would involve useless and unnecessary expenses to Whitfield County;

NOW, THEREFORE, it is hereby ordered that the portion of Mallard Road described above be closed, discontinued and abandoned and the land encompassed within said road revert to the abutting property owners, said discontinuance and abandonment of said public roadway purposes be affective from this date.

Let the Petition, Notice, and Order be certified by duly recording the same of the minutes of the Board of Commissioners of Whitfield County, Georgia.

This _____ day of _____, 2026.

**Board of Commissioners of Whitfield County,
Georgia**

By: _____
Chairman

Attest: _____
Clerk

SEPT 18, 1945
SCALE - 1" = 100

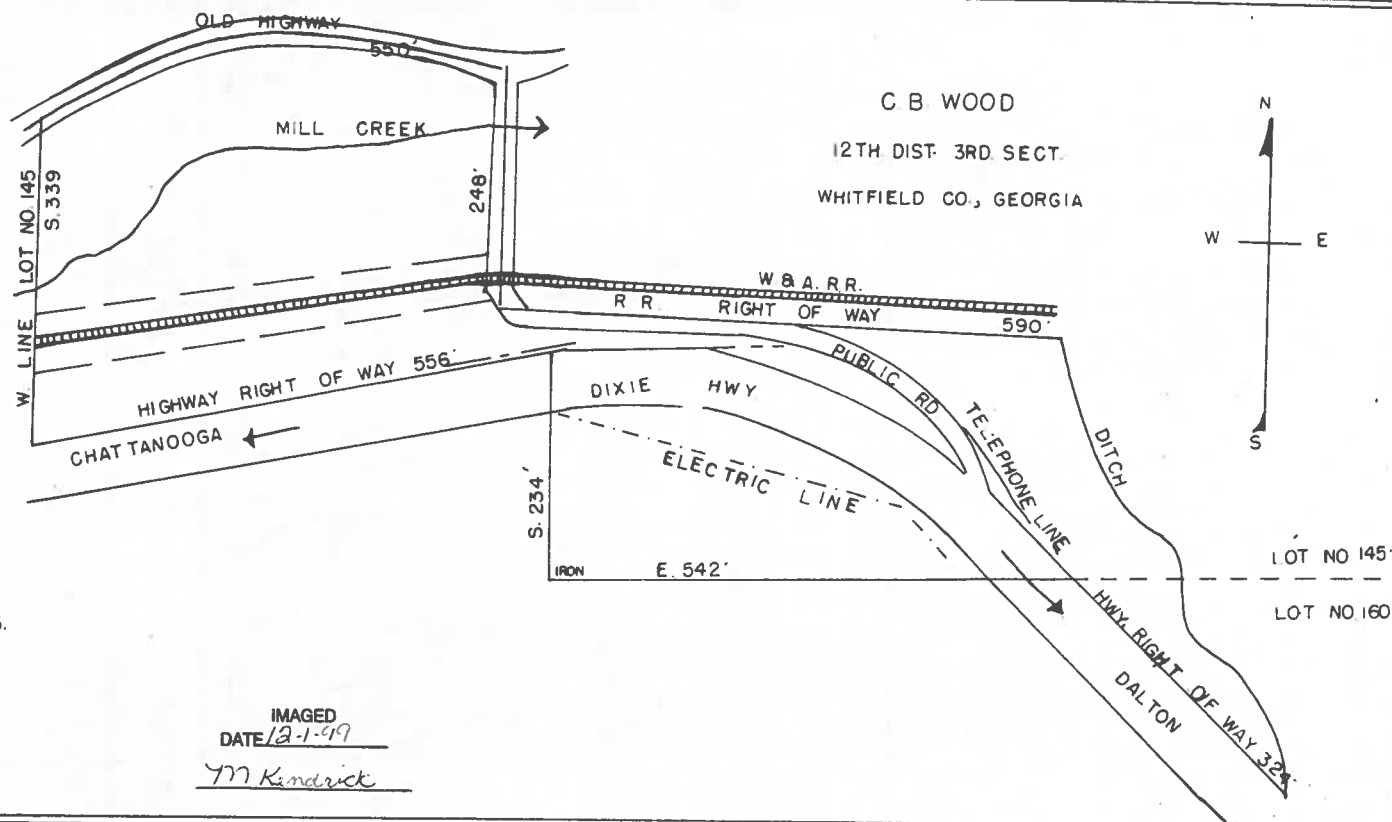
R. E. SMITH - SURVEYOR

REGISTERED SURVEYOR NO. 262
REGISTERED CIVIL ENGINEER NO. 725

PLAT BOOK I
PAGE 166

IMAGED
DATE 12-1-99

M. Kendrick



SURVEY NOTES

CLOSURE STATEMENT

THE FIELD DATA UPON WHICH THIS PLAT IS BASED HAS A CLOSURE PRECISION OF 1':47.618" AND AN ANGULAR ERROR OF 2.13" PER ANGLE POINT.

THE FIELD DATA WAS ADJUSTED USING LEAST SQUARES.

THIS PLAT HAS A CLOSURE PRECISION OF 1':139,360'

EQUIPMENT

ALL FIELD MEASUREMENTS WERE MADE USING A SOKKIA IX1003 ROBOTIC TOTAL STATION AND A SOKKIA GRX5 GNSS SYSTEM.

FLOOD STATEMENT

BASED ON GRAPHIC PLOTTING OF DATA SETS FROM FEMA'S NATIONAL FLOOD HAZARD LAYER (NFHL), A PORTION OF THE SUBJECT PROPERTY DOES LIE WITHIN A 1% ANNUAL CHANCE SPECIAL FLOOD HAZARD AREA. THE SUBJECT PROPERTY IS LOCATED IN (ZONE(S) AE & X) AS SHOWN ON F.I.R.M. MAP NO. 13313C0136D, EFFECTIVE DATE 09/19/2007.

BASIS OF BEARINGS

BEARINGS ROTATED TO MONUMENTS FOUND AND SURVEY CONTROL POINTS LOCATED BY GNSS OBSERVATION USING A SOKKIA GRX5 GNSS SYSTEM. ONSITE COORDINATES ESTABLISHED BY STATIC OBSERVATION AND POST-PROCESSED USING OPUS-S. THE RELATIVE POSITIONAL ACCURACY, AS CALCULATED ACCORDING TO THE FEDERAL GEOGRAPHIC DATA COMMITTEE PART 3: NATIONAL STANDARD FOR SPATIAL DATA ACCURACY, IS .04 FEET HORIZONTAL AND .06 FEET VERTICAL AT THE 95% CONFIDENCE LEVEL.

SURVEY REFERENCES

1. PLAT OF WILLOWDALE SUBDIVISION BY R.E. SMITH, DATED SEPTEMBER, 1936 AND RECORDED IN PLAT BOOK 1, PAGE 107, WHITFIELD COUNTY LAND RECORDS.
2. MINOR SUBDIVISION PLAT FOR HAMILTON MEDICAL CENTER, INC. BY CHRISTOPHER LEE LEWIS, DATED SEPTEMBER 22, 2021 AND RECORDED IN PLAT CABINET F, SLIDE 299, WHITFIELD COUNTY LAND RECORDS.
3. SURVEY FOR WHITFIELD HEALTHCARE FOUNDATION BY CHRISTOPHER LEE LEWIS DATED AUGUST 9, 2022 (UNRECORDED)

ZONING INFORMATION

THE PARCEL BEING SUBDIVIDED IS CURRENTLY ZONED R-2 (LOW DENSITY, SINGLE-FAMILY RESIDENTIAL). BUILDING SETBACKS ARE AS FOLLOWS:

FRONT (MAJOR):
FRONT (MINOR):
SIDES:
REAR:

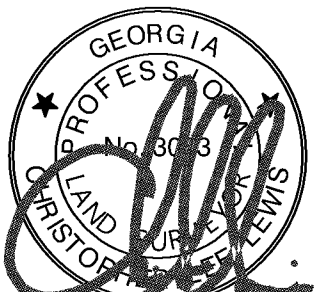
ZONING INFORMATION TAKEN FROM WHITFIELD COUNTY, GEORGIA G.I.S. MAPS AND UNIFIED ZONING ORDINANCE. ALL INFORMATION SHOULD BE VERIFIED PRIOR TO DESIGN OR CONSTRUCTION.

GENERAL NOTES

1. THIS PLAN WAS PREPARED BY THE SURVEYOR OR UNDER HIS DIRECT SUPERVISION BASED ON AN ACTUAL ON THE GROUND SURVEY.
2. NO CONCEALED OR UNRECORDED EASEMENTS OR INTERESTS AFFECTED ANY OF THE DATE OF PLAT PREPARATION AS LISTED IN THE TITLE BLOCK.
3. ALL IRON PINS SET (IPS) BE 1/2-INCH CAPPED REBARS OR MAG NAILS WITH METAL WASHERS, UNLESS NOTED OTHERWISE.
4. NO EASEMENTS OR INTERESTS AFFECTED BY LEWIS & ASSOCIATES LAND SURVEYING, LLC, NOR WAS AN INDEPENDENT TITLE SEARCH PERFORMED BY LEWIS & ASSOCIATES LAND SURVEYING, LLC. ALL MATTERS PERTAINING TO TITLE ARE RECORDED.
5. NO EFFORT TO OBTAIN THE LOCATION OF UNDERGROUND UTILITIES WAS MADE DURING THE COURSE OF THIS SURVEY. LEWIS & ASSOCIATES LAND SURVEYING DOES NOT GUARANTEE AS TO THE EXISTENCE OR NON-EXISTENCE OF SAID UTILITIES.
6. ALL DIMENSIONS SHOWN ARE HORIZONTAL GROUND DISTANCES.
7. SUBJECT PROPERTY IS CONTIGUOUS TO ALL ADJACENT PROPERTIES AND EIGHT (8) FEET OR MORE. NO GUARANTEE.
8. CERTIFICATION DOES NOT EXTEND TO ANY UNNAMED PARTY(IES) WITHOUT AN EXPRESS RE-CERTIFICATION BY THE SURVEYOR.
9. THIS SURVEY IS SUBJECT TO THE RULES "180-6-092(2) AND (3)" AND RELATING TO PROFESSIONAL ENGINEERING OR LAND SURVEYING SERVICES, AS DEFINED IN O.C.G.A. 43-15-2(6) AND (11), SHALL MAKE A SIGNED STATEMENT BASED UPON FACTS AND KNOWLEDGE KNOWN TO THE REGISTRANT AND IS NOT A GUARANTEE OF THE ACCURACY OF THE SURVEY.
10. THIS SURVEY COMPLIES WITH BOTH THE RULES OF THE GEORGIA BOARD OF REGISTRATION FOR PROFESSIONAL ENGINEERS AND LAND SURVEYORS AND THE RULES OF THE BOARD OF PROFESSIONAL SURVEYORS, CHAPTER 67, IN THAT WHERE A CONFLICT EXISTS, THE REQUIREMENTS OF LAW PREVAIL.

SURVEYOR'S CERTIFICATION

THIS PLAN IS A RETRACEMENT OF AN EXISTING PARCEL, OR PARCELS OF LAND AND DOES NOT SUBDIVIDE OR CREATE A NEW PARCEL OR MAKE ANY CHANGES TO ANY REAL PROPERTY BOUNDARIES. THE RECORDING INFORMATION OF THE DOCUMENTS, MAPS, PLATS, OR OTHER INSTRUMENTS WHICH CREATED THE PARCEL OR PARCELS OF LAND IS THE BASIS OF THE SURVEY. THE SURVEY IS BASED ON THE ORIGINAL OF ANY LOCAL JURISDICTION, AVAILABILITY OF PERMITS, COMPLIANCE WITH LOCAL REGULATIONS OR REQUIREMENTS, OR SUITABILITY FOR ANY USE OR PURPOSE OF THE LAND. FURTHERMORE, THE UNDERSIGNED LAND SURVEYOR CERTIFIES THAT THIS PLAT COMPLIES WITH THE MINIMUM TECHNICAL STANDARDS FOR PROPERTY SURVEYING PRACTICE AND THE SURVEY IS IN ACCORDANCE WITH THE ORDINANCES OF THE GEORGIA BOARD OF REGISTRATION OF PROFESSIONAL ENGINEERS AND LAND SURVEYORS AND AS SET FORTH IN O.G.C.A. SECTION 15-6-67.



CHRISTOPHER L. LEWIS, PLS, CFS DATE OF PL
GEORGIA PLS #3063 / GEORGIA LSF #1169
TENNESSEE RLS #2824 / NORTH CAROLINA PLS #L-5329

DATE OF PLAT: AUGUST 3, 2026

CURVE TABLE					
CURVE	RADIUS	ARC LENGTH	CHORD LENGTH	CHORD BEARING	DELTA ANGLE
C1	600.00'	38.40'	38.40'	S 81°55'30.7" E	3°38'12"
C2	600.00'	72.16'	72.11'	S 87°25'45" E	7°22'06"
C3	433.00'	72.50'	72.42'	N 84°05'38" E	9°35'38"
C4	433.00'	106.44'	106.17'	N 72°15'01" E	14°05'05"
C5	1157.00'	172.69'	172.53'	N 69°29'02" E	8°33'07"
C6	1250.00'	22.25'	22.25'	N 31°50'00" W	-10°11'22"
C7	1250.00'	85.30'	85.29'	N 70°47'06" E	3°54'36"
C8	359.95'	133.33'	133.01'	N 79°26'29" E	21°13'22"
C9	359.95'69"	30.01'	30.57'	S 88°15'43" W	0°33'43"
C10	1280.00'	122.25'	121.52'	S 21°26'29" W	-21°13'22"
C11	1280.00'	96.95'	96.93'	S 71°00'00" W	-4°20'23"
C12	1280.00'	13.18'	13.18'	S 73°25'53" W	0°35'25"
C13	1722.00'	166.23'	168.06'	S 69°29'02" W	8°33'07"
C14	463.00'	191.34'	189.98'	S 77°02'50" W	23°40'43"
C15	630.00'	81.02'	80.96'	N 87°25'45" E	7°22'06"

LINE TABLE

LINE	BEARING	DISTANCE
L1	S 80°06'30" E	36.66'
L2	N 88°53'12" E	16.78'
L3	N 65°12'32" E	27.61'
L4	N 65°12'32" E	24.24'
L5	N 73°45'36" E	186.95'
L6	N 68°49'48" E	69.59'
L7	S 89°56'50" W	70.15'
L8	S 77°40'15" E	166.97'
L9	S 23°31'02" W	1.05'
L10	S 00°39'16" E	163.51'
L11	N 03°39'16" W	158.01'
L12	N 23°31'02" W	16.62'
L13	N 77°40'15" E	148.40'
L14	N 89°56'50" W	144.94'
L15	S 68°49'48" W	69.59'
L16	S 73°45'36" W	186.95'
L17	N 65°12'32" W	87.85'
L18	S 89°53'18" W	16.78'
L19	N 66°15'18" E	30.00'



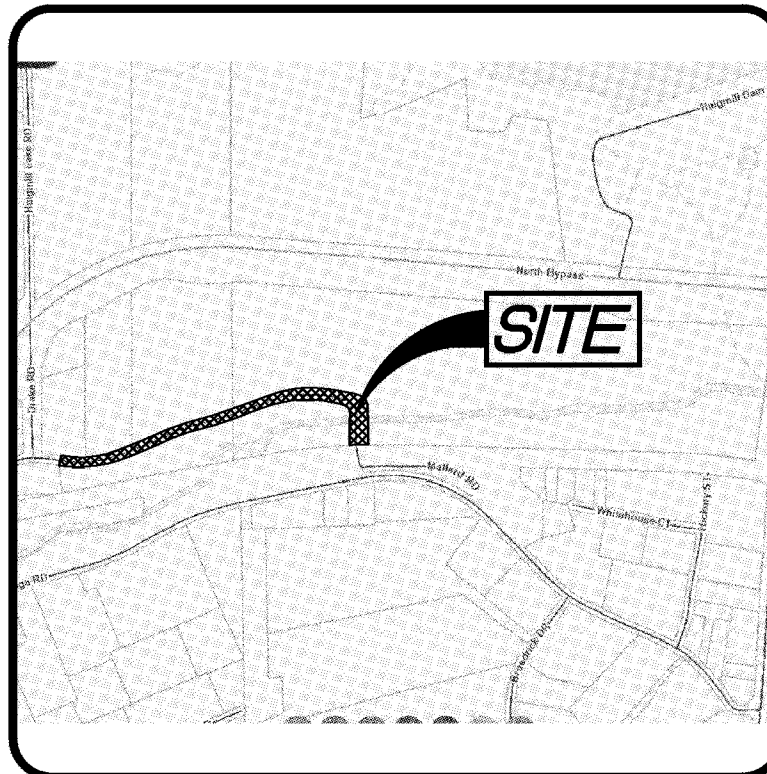
GRAPHIC SCALE

60' 0 60' 120

1 Inch = 60 Feet

LEGEND

_____	PROPERTY LINE (SUBJECT)		ELECTRIC TRANSFORMER
____ _	PROPERTY LINE (ADJACENT)		SANITARY SEWER MANHOLE
____ _	OVERHANG/AWNING		LIGHT POLE
_____	BUILDING SETBACK LINE		POWER POLE
B.S.L.	BUILDING SETBACK LINE		SIGN
⊕	CENTERLINE	L.L.	LAND LOT
⊕	PROPERTY LINE	IPS	IRON PIN SET
P.O.B.	PROPERTY LINE	RB	REBAR
P.O.C.	PROPERTY LINE	CRB	CAPPED REBAR
W	WATER LINE	CMF	CONCRETE MONUMENT FOUND
OHE	OVERHEAD UTILITY LINE	FND	FOUND
G	GAS LINE	X-TIE	RAILROAD CROSSTIE
SS	SANITARY SEWER LINE	C & G	CURB AND GUTTER
UGE	UNDERGROUND ELECTRIC LINE	RCP	REINFORCED CONCRETE PIPE
_____ X _____ X _____	FENCE LINE	CMF	CORRUGATED METAL PIPE
_____	STORM DRAIN PIPE	HDPE	HIGH-DENSITY POLYETHYLENE
 WV	WATER VALVE	FES	FLARED END SECTION
 FH	WATER METER	SQ. FT.	SQUARE FEET
_____	FIRE HYDRANT		



VICINITY MAP
(N.T.S.)



Lewis & Associates
Land Surveying, LLC.

GEORGIA PLS #3063
TENNESSEE RLS #2824
NORTH CAROLINA PLS #L-5329
GEORGIA LSF #1169
NORTH CAROLINA LSF #P-2042
GSWCC CERTIFICATION NO. 3115

BOUNDARY SURVEY (RIGHT OF WAY RETACEMENT) FOR:

VHCS HOLDINGS, LLC
MALLARD DRIVE RIGHT OF WAY
DALTON, GEORGIA 30720

CITY: UNINCORPORATED

COUNTY: WHITFIELD

LAND LOT(S): 145 & 146

© 2026, LEWIS & ASSOCIATES SURVEYING, LLC

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UNLESS THIS DRAWING IS STAMPED, SIGNED AND DATED BY THE SURVEYOR IT SHOULD BE CONSIDERED PRELIMINARY

[illegible]

DRAWING FILE: 26-0032

DWG SCALE 1"=60'

ET NO.

1/1

Agenda Item

- ☐ Work Session
☐ Special Called Meeting
☒ Regular Business Meeting

Meeting Date: September 14, 2026
Subject: CJCC GA Opioid Crisis Abatement Trust Grant Application
Department: Accountability Courts
In Budget Amount: Operating- _____ Capital- _____
Expenditure Line Item # _____
Not in Budget Amount: _____
Funding Source: _____

Date needed: September 14, 2026



Whitfield County Board of Commissioners
301 W. Crawford Street
Dalton, Georgia 30720
Phone: 706-275-7507
Fax: 706-275-7540

History/Facts/Issues: This is your opportunity to explain the who, what, when, where, and why.

The Accountability Courts are seeking ratification of a grant application for funding from the Georgia Opioid Crisis Abatement Trust being administered by Georgia's Criminal Justice Coordinating Council. A total of \$136,120 is being requested to fund a portion of the drug testing lab operations as well as transitional housing for Accountability Court participants. The funding period is January 2027-December 2027 and no match is required.

Suggested Motion:

Ratify application

Clerk Use ONLY

Request Made By: Carol Roberts

County Administrator's
Recommended Action:

Motion/Second:	Approved:	Date:

Agenda Item

- ☐ Work Session
☐ Special Called Meeting
☒ Regular Business Meeting

Meeting Date: September 14, 2026
Subject: Byrne Justice Assistance Grant Application
Department: County Administration
In Budget Amount: Operating- _____ Capital- _____
Expenditure Line Item # _____
Not in Budget Amount: _____
Funding Source: _____

Date needed: September 14, 2026



Whitfield County Board of Commissioners
301 W. Crawford Street
Dalton, Georgia 30720
Phone: 706-275-7507
Fax: 706-275-7540

History/Facts/Issues: This is your opportunity to explain the who, what, when, where, and why.

County Administration is seeking approval to apply for the FY2026 cycle of the JAG grant program. Applications are due in October. This is federal funding that is administered by the Bureau of Justice Assistance. The funding can be used for activities related to law enforcement, prosecution, courts, and corrections. Whitfield County has the potential to receive \$28,734 and there is no match required.

Suggested Motion:

Approve application

Request Made By: Carol Roberts

County Administrator's
Recommended Action:

Clerk Use ONLY

Motion/Second:	Approved:	Date:

Agenda Item



Whitfield County Board of Commissioners
301 W. Crawford Street
Dalton, Georgia 30720
Phone: 706-275-7507
Fax: 706-275-7540

- ☐ Work Session
☐ Special Called Meeting
☒ Regular Business Meeting

Meeting Date: September 14, 2026
Subject: FY26 Bridging Immigration Grant Application
Department: Sheriff's Office
In Budget Amount: Operating- _____ Capital- _____
Expenditure Line Item # _____
Not in Budget Amount: _____
Funding Source: _____

Date needed: September 14, 2026

History/Facts/Issues: This is your opportunity to explain the who, what, when, where, and why.

The Sheriff's Office is seeking ratification of a federal grant application for the FY26 Bridging Immigration Grant administered by the Department of Justice. A total of \$635,565 is being requested for various technology and equipment. No match is required. The project consists of three coordinated initiatives:

- * The Criminal Investigative Intelligence and Enforcement Enhancement Program
- * The Court Operations and Secure Transportation Enhancement Program
- * The Detention Safety and Operational Capacity Enhancement Program

Suggested Motion:

Ratify application

Clerk Use ONLY

Motion/Second:	Approved:	Date:

Request Made By: Carol Roberts for Captain Wesley Lynch

County Administrator's
Recommended Action:

--

Agenda Item

- ☐ Work Session
☐ Special Called Meeting
☒ Regular Business Meeting

Meeting Date: September 14, 2026
Subject: Surplus two vehicles.
Department: Sheriff's Office Vehicles
In Budget Amount: Operating- _____ Capital- _____
Expenditure Line Item # _____
Not in Budget Amount: _____
Funding Source: _____
Date needed: September 14, 2026



Whitfield County Board of Commissioners
301 W. Crawford Street
Dalton, Georgia 30720
Phone: 706-275-7507
Fax: 706-275-7540

History/Facts/Issues: This is your opportunity to explain the who, what, when, where, and why.

The Sheriff's Office is requesting that the following two vehicles be declared surplus and removed from the County fleet due to age, mileage, condition, and repair costs.

1. 2002 Ford E-350 Van VIN: 1FBSS31L32HA72994 | Mileage: 176,607 The vehicle's lighting package and rear air-conditioning system are no longer functioning, with estimated repairs exceeding \$3,000.00. This van is used to transport inmate work crews who mow County locations, collect trash along County roadways, and assist with other County tasks. Due to the vehicle's age, mileage, and poor interior condition, the lack of rear A/C creates inadequate cooling for inmates working in the heat. The Jail has provided a newer van from within the fleet for this crew, eliminating the need for the County to make the necessary repairs to the 2002 Ford.

2. 2019 Dodge Charger VIN: 2C3CDXKT8KH647492 | Mileage: 135,292 The vehicle requires a top-end engine rebuild, including the cam, lifters, and injectors, as well as a tune-up. The entire front end also requires rebuilding, including suspension and steering components, with total estimated repairs exceeding \$4,200.00. The vehicle has been involved in numerous pursuits and wrecks since being purchased new and is no longer considered economically practical for continued patrol use. It will be removed from patrol service and replaced with a new vehicle.

Both vehicles may be sold as-is through GovDeals or another County-approved surplus auction process to recover any available residual value. Reusable department equipment has been removed from the vehicles or will be removed prior to sale. Based on their age, mileage, condition, repair costs, and current fleet needs, the Sheriff's Office recommends that both vehicles be declared surplus.

Additional Vehicles will be removed from service due to age, mileage, and condition to compensate for the new vehicles being requested, however those vehicle were purchased with the Sheriff's Office Drug Seizure Fund and will be sold through that Auction platform.

Suggested Motion:

Approve surplus and transfer to the Road Department to sale vehicle on Govdeals.

Request Made By: Sgt. Phillip Bishop

County Administrator's
Recommended Action:

Clerk Use ONLY

Motion/Second:	Approved:	Date:

Agenda Item

- ☐ Work Session
☐ Special Called Meeting
☒ Regular Business Meeting

Meeting Date: Spetember 14, 2026
Subject: Sheriff's Office Vehicle purchase (5)
Department: Sheriff's Office
In Budget Amount: Operating- _____ Capital- _____
Expenditure Line Item # _____
Not in Budget Amount: _____
Funding Source: SPLOST

Date needed: September 14, 2026



Whitfield County Board of Commissioners
301 W. Crawford Street
Dalton, Georgia 30720
Phone: 706-275-7507
Fax: 706-275-7540

History/Facts/Issues: This is your opportunity to explain the who, what, when, where, and why.

As previously discussed, the Sheriff's Office will be removing vehicles from service and requires replacement vehicles to maintain fleet operations.

Bid SO2026-004 was issued through the proper bid process and opened on 08/26/2026 at 2:00 PM. Multiple bids were received. Akins Ford submitted the low bid of \$188,520.80 for four (4) 2027 Ford Police Interceptors.

Ford of Dalton was present at the bid opening and submitted a bid of \$191,200.00. Under the 4% Local Business Privilege, Ford of Dalton agreed at the bid opening to match the low bid price of \$188,520.80, or \$47,130.20 per vehicle, while meeting all bid specifications. Ford of Dalton immediately completed and submitted the required Local Vendor Privilege Qualifications Form.

Bid SO2026-005 was also opened on 08/26/2026 at 2:00 PM. Hardy Chevrolet and GMC of Dallas, GA was the only bidder meeting all requirements of the bid. Hardy operates a large fleet dealership and is able to meet the specifications for the requested 2027 4x4 crew cab pickup truck. Due to the intended use of this vehicle for investigations and potential undercover operations involving the Narcotics and Special Victims Units, specifications have been kept to a minimum to protect investigative effectiveness and officer safety. The total purchase price is \$54,354.40.

Both purchases are anticipated to be completed and delivered during the final quarter of 2026.

Ford of Dalton – Four (4) 2027 Ford Police Interceptors: \$188,520.80
Hardy Chevrolet and GMC – One (1) 2027 4x4 Crew Cab Pickup: \$54,354.40
Total SPLOST Vehicle Expenditure: \$242,875.20

The Sheriff's Office requests approval to proceed with these purchases using the applicable SPLOST vehicle funds.

Suggested Motion:

Approve both so that these vehicles can be ordered prior to manufacturer cut off dates. Both vendors has been used by the county in the past for similar purchases.

Request Made By: Sgt. Phillip Bishop

County Administrator's
Recommended Action:

Clerk Use ONLY

Motion/Second:	Approved:	Date:

7
RECEIVED AUG 26 2026

BIDS FOR FOUR NEW MID-SIZE SUV POLICE PURSUIT RATED VEHICLES

8/26/2026 2:00PM

ITB#SO2026-004

SIGN IN

P. B.
M. H.

[Signature]
[Signature]

[Signature]
[Signature]

[Signature]

BIDDER

TOTAL BID

DELIVERY DATE

BIDDER

TOTAL BID

DELIVERY DATE

AKINS FORD ^{WIPPER}
188,520.80

12/20 IF ORDERED BY NEXT COUPLE WEEKS

DUVAL FORD ^{UX}
201,840.00

BOZARD FORD ^{FL}
194,260.00

PRATER FORD
191,424.80

^{PA}
ONE NATION DIST. LLC
~~237,976.00~~ 237,976.00

HARDY FAMILY FORD
192,960.80

FORD OF DALTON
191,200.00

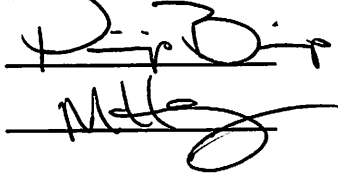
RECEIVED AUG 27 2026

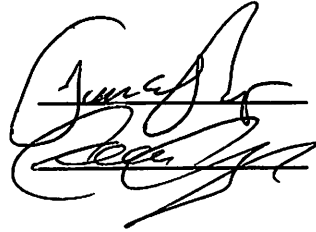
BIDS FOR ONE NEW 2027 CREW CAB PICK UP TRUCK 4WD

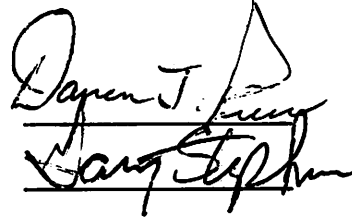
8/26/2026 2:00PM

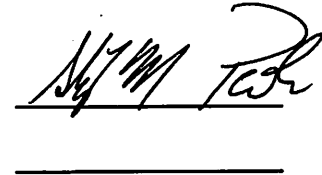
ITB#SO2026-005

SIGN IN









BIDDER

NASHVILLE AUTOMOTIVE

ONE NATION DIST. LLC

FORD & DALTON

TOTAL BID

60,900.00

55,494.00

50,667.00

DELIVERY DATE

BIDDER

HARDY CHEV/GMC.

TOTAL BID

54,354.40

DELIVERY DATE



WHITFIELD COUNTY

Finance Department
PO Box 248
Dalton, GA 30722
Phone: 706-275-7500

LOCAL VENDOR PRIVILEGE QUALIFICATIONS

Pursuant to the Whitfield County Purchasing Policy Section G.7., a local vendor privilege allows qualifying local vendors who bid within 4% of the low bid an opportunity to match the low bidder within 24 hours of notification from the County Finance Department when bidding for supplies, equipment, materials, and personal services that are not part of a public works project. If more than one local vendor meets the qualifications, the lowest bidder will be given the first opportunity to agree to match the low bid. If they refuse, the next lowest bidder will get the opportunity and so on until all local vendors within the 4% range have been given an opportunity.

In order to qualify for this privilege, a vendor must meet all of the following criteria:

1. The local business shall have established a place of business within Whitfield County.
2. The local business must have at least two (2) employees who have worked in Whitfield County for at least six (6) months prior to submitting the bid.

Bidders claiming local vendor privilege for any Bid, Price Quote, or RFP must submit an Affidavit of Eligibility (see next page) with their bid or quote response.

For questions or assistance relating to the County's local vendor preference policy, call us at 706-275-7500.



WHITFIELD COUNTY

Finance Department
PO Box 248
Dalton, GA 30722

Phone: 706-275-7500

Fax: 706-275-7501

LOCAL VENDOR PRIVILEGE AFFIDAVIT OF ELIGIBILITY

Complete all areas below. Incomplete forms may be rejected. Submit by mail or fax to the above address.

1. LEGAL NAME OF FIRM:

FORD OF DALTON

Mailing Address:

PO BOX 519
DALTON, GA 30722

Physical Address (if different):

925 Shugart Rd
DALTON, GA 30720

2. Month and Year your business was established in Whitfield County: MARCH 2018

3. Does your business have more than two (2) or more employees who have worked at the above location for six (6) months or longer?

Yes ☒ No ☐

4. All employees working at the firm are legally authorized to work in the United States?

Yes ☒ No ☐

5. Bid or RFP # for which that firm is requesting the local vendor privilege:

ITB SO 2026-004

Under penalty of perjury, the undersigned states that the foregoing statements are true and correct. The undersigned also acknowledges that any person, firm, corporation or entity intentionally submitting false information to the County in an attempt to qualify for local privilege shall be prohibited from bidding on Whitfield County products and services for a period of one (1) year.

Authorized Signature: mtg

Date: 8/26/26

Printed Name & Title: Matt Hayes Fleet Manager

Phone: 706 278 1151

In accordance with O.C.G.A. Section 42-8-101(b)(1), this Agreement shall be attached as an exhibit to documentation of the Governing Authority's approval to privatize probation services and the judge's express written consent to privatize probation services.

Probation Services Agreement

This Agreement is made by and between the Governing Authority of Whitfield County, Georgia (hereinafter "the County ") and Georgia Probation Services, Inc., a corporation organized under the laws of the State of Georgia with its principal place of business at PO Box 906, Trenton GA 30752 (hereinafter "Contractor") on behalf of the Probate Court of Whitfield County Georgia (hereinafter "the Court"). This Agreement is governed by Article 6 of Chapter 8 of Title 42 of the Official Code of Georgia, Annotated. The parties enter into the Agreement under the specific authority of 42-8-101.

NOW, THEREFORE, in consideration of the mutual covenants herein contained, the parties agree as follows:

SCOPE OF SERVICES AND RESPONSIBILITIES OF CONTRACTOR

In consideration of the obligations of the Court or the County , Contractor shall provide the following services.

Responsibilities of Probation Services Contractor

1. Compliance with Statutes and Rules. Contractor shall be registered with the Department of Community Supervision and shall comply with all laws that apply to probation companies in Georgia and all standards, rules and regulations promulgated by the Department of Community Supervision. All probation management activities and/or reporting activities performed by Contractor pursuant to this Agreement must be accomplished in strict compliance with all applicable Federal and Georgia laws, as are now in effect or hereafter may be amended. If a contradiction or conflict exists between all applicable Federal or Georgia laws and any terms, conditions, stipulations, etc., listed herein, the term, condition, stipulation, etc., listed herein shall not be applicable and the County shall, upon notification of a contradiction or conflict, issue an amendment to bring the term, condition, stipulation, etc., into compliance with the law.

2. Records and Confidentiality. Contractor shall keep all reports, files, records, and papers, either physical or digital, in a centralized location convenient to the County . Such reports, files, records, and papers are and shall remain the property of the County and shall be maintained in accordance with the Open Records Act. Contractor shall create and maintain files for each offender receiving services from Contractor in accordance with this Agreement. Contractor shall maintain the confidentiality of all files, records, and papers relative to supervision of probationers under this Agreement in accordance with applicable law. These records, files and papers shall be available only to the County , an auditor appointed by the County , the judge handling the case, the Department of Audits and Accounts, the Department of Community Supervision, the State Board of Pardons and Paroles, or the Board of Community Supervision, and to the probationer as provided in O.C.G.A. Section 42-8-109.2 and upon transfer of probation supervision to the State, to the Georgia Department of Corrections.

3. Financial Records. Contractor shall maintain financial records according to accepted accounting practices.

4. Employees Qualifications and Training: Contractor's Probation Officer Qualifications and Training. Contractor should employ competent and able personnel to provide the services to be rendered hereunder and to appropriately administer the caseload. Contractor shall abide specifically by rule 105-2-.09 of the rules for misdemeanor probation services of the Department of Community Supervision. Contractor shall have at least

one supervisor with five years' experience in corrections, parole, or probation services. Any person employed as and using the title of a private probation officer or probation officer must undergo a background check by the Department of Community Supervision. In accordance with O.C.G.A 42-8-107, and rule 105-2-.10 of the rules for misdemeanor probation services of the Department of Community Supervision. Any such person shall be at least 21 years of age at the time of appointment to the position of private probation officer or probation officer and shall have completed a standard two-year college course or have four years of law enforcement experience; provided, however, that any person employed as a private probation officer as of July 1, 1996, and who had at least six months of experience as a private probation officer or any person employed as a probation officer by a County, municipality, or consolidated government as of March 1, 2006, shall be exempt from such college requirements. Every private probation officer shall receive an initial 40 hours of orientation upon employment and shall receive 20 hours of continuing education per annum as approved by the board, provided that the 40 hour initial orientation shall not be required of any person who has successfully completed a basic course of training for supervision of probationers or parolees certified by the Peace Officer Standards and Training Council or any private probation officer who has been employed by a private probation corporation, enterprise, or agency for at least six months as of July 1, 1996, or any person employed as a probation officer by a City, municipality, or consolidated government as of March 1, 2006. In no event shall any person convicted of a felony be employed. Contractor shall ensure its policies and procedures meet any legal requirement for individual training.

A: Administrative Employees, Agents, Interns or Volunteer Qualifications and Training. Contractor should employ or appoint competent and able personnel to provide administrative services to be rendered hereunder and to appropriately administer administrative assistance to probationers and probation officers. In accordance with O.C.G.A 42-8-106.1 and 42-3-10 and the rules of the Department of Community Supervision any such person shall be at least 18 years of age, have signed a statement co-signed by the Director or his/her designee that the administrative employee, agent, inter or volunteer has received an orientation on these rules as well as operations guidelines relevant to the their job duties which will be maintained in the personnel files of Georgia Probation Services, Inc. Any such person shall have a high school diploma or its equivalent and shall complete a 16-hour initial orientation program within 6 months of appointment and 8 hours of annual in-service continuing education training consisting of the approved curriculum by the MPOU unit of the Department of Community Supervision. In addition, administrative staff must submit ongoing criminal background checks completed by the Department of Community Supervision, submit fingerprinting upon request, must maintain a clear criminal record, must report any arrest within 48 hours, and must abide by all laws and rules as it pertains to misdemeanor probation entities. In no event shall any person convicted of a felony be employed by Georgia Probation Services, Inc. in any capacity.

5. Criminal History and Background Check. Contractor represents and warrants that all employees have had or shall have criminal history and background checks by the Department of Community Supervision and have given or shall give the Department of Community Supervision written consent to conduct periodic criminal history checks.

6. Officer per Probationer Ratio and Standards of Supervision. Contractor shall manage caseload limits so as not to exceed 399 probationers per probation officer. Probation Officers shall make contact either in person, or by telephone or email with each probationer each month. The number of contacts shall be determined by the desire and compliance of the probationer and may be increased or decreased accordingly.

7. Location Place of Business. Contractor shall establish a schedule for meeting with probationers and the provision of services to probationers in the vicinity of Whitfield County Georgia so as not to place an undue burden on the probationers.

8. Reporting and record keeping procedures. Contractor shall abide specifically by rule 105- 2-.13 and 105-2-.14 of the rules for misdemeanor probation services of the Department of Community Supervision and O.C.G.A 42-8108 and 42-8-109.2 as to all reports and records. Contractor shall provide to the judge who approved this contract or his or her designee and the Board of Community Supervision (the "Board") a quarterly report summarizing the number of offenders under supervision; the amount of fines, statutory surcharges, and restitution collected; the amount of fees collected and the nature of such fees, including probation supervision fees, rehabilitation programming fees, electronic monitoring fees, drug or alcohol detection device fees, substance abuse or mental health evaluation or treatment fees, and drug testing fees **(NOTE; GEORGIA PROBATION SERVICES, INC DOES NOT CHARGE ANY ADDITIONAL FEE OTHER THAN THE SUPERVISION FEE)**; the number of community service hours performed by probationers under supervision; a listing of any other service for which a probationer was required to pay to attend; the number of offenders for whom supervision or rehabilitation has been terminated and the reason for the termination; and the number of warrants issued during the quarter; whether the case was closed successfully or unsuccessfully; the number of warrants issued during the quarter; the number of probationers using community service hours to satisfy fine or other financial obligations, and the number of community service hours so converted; amounts of unpaid financial obligations, specifying amounts of Probation Fees, crime victim funds, victim restitution, and fines/other funds to be paid to the court; and number of cases where each of the following types of requirements were incomplete: community service, evaluation/counseling, risk reduction school, defensive driving school. The report shall be delivered by the end of the month following the calendar quarter.

A. At least annually by January 31 of each year, Contractor shall provide a report to the Court and the governing authority that includes all information set forth in the preceding four quarterly reports.

B. Contractor shall provide such other reports as may be requested by the Court during the period of this Agreement which may include but are not limited to statistical reports, caseload data, and other records documenting the identity of the probationer, the status of each probationer's case, the services provided, and the monies collected. Contractor shall provide such reports to the Court or the governing authority within 30 days of the written request of the Court or the governing authority.

9. Tender of Collections. Contractor shall deliver over to the Clerk of Court at least monthly all funds paid by probationers, except that Contractor shall retain funds due for Probation Fees; shall pay Crime Victim Emergency Fund ("CVEF") fees directly to the Criminal Justice Coordinating Council; and shall pay victim restitution funds to the victim or to the Clerk of Court as provided below. All said sums shall be disbursed at least monthly to the person or entity entitled to such payment, by the 15th day of the month following payment by probationer.

A. Contractor shall tender to the Clerk of the Court a report of collections and all fines, fees, and costs collected during the month from probationers by the (15th) day of the following month. Restitution shall be paid to the victim by the (15th) day of the month following collection unless the Court orders payment to the clerk of court, and then it shall be paid as such other collections are paid to the Clerk. In the event Contractor cannot locate the victim, payment shall be made to the Clerk of Court. Contractor shall credit payments of funds in the following order of priority: 1) probation fees to include GCVEF. 2) restitution 3) Fines, 4) court costs and surcharges, Contractor shall not retain or profit from any fines, restitution, fees, or cost collected from probationers except the probation fee authorized by this Agreement.

10. Access to Contractor Records. All records shall be open to inspection upon the request of the County , the Court, the Department of Audits and Accounts, an auditor appointed by the County , or the Department of Community Supervision. Contractor shall fully cooperate with the inspection of records and shall provide timely and complete access to such records upon request.

A. Fiscal Audit: Contractor shall allow any auditor hired by the County to annually audit its records and books pertaining to the services rendered to the court upon request.

11. Conflict of Interest per O.C.G.A 42-8-109. Contractor shall not engage in any other employment, business, or activity which interferes with or conflicts with its duties and responsibilities as a probation corporation, enterprise, or agency under applicable law or which interferes with or conflicts with its duties and responsibilities under this agreement.

A. Contractor and its employees, agents and officers shall not have personal or business dealings, including the lending of money, with probationers under their supervision.

B. Contractor and its employees, agents and officers shall not own, operate, or have any financial interest in, be an instructor at, or be employed by any private entity which provides drug or alcohol education services or offers a DUI Alcohol or Drug Use Risk Reduction Program certified by the Department of Driver Services.

C. Contractor and its employees, agents and officers, shall not specify, directly or indirectly, a DUI Alcohol or Drug Use Risk Reduction Program which a probationer may or shall attend. This paragraph shall not prohibit furnishing any probationer, upon request, with the names of certified DUI Alcohol or Drug Use Risk Reduction Programs.

12. Scope of Services to Probationers by Contractor. Contractor shall provide the following services:

A. Court Attendance and Probationer Case History. During all court sessions, Contractor shall have a probation officer attend and interview each offender to complete a case and personal history and to provide orientation and instruction regarding compliance with the Court's ordered conditions of probation. At orientation, the probation officer shall provide a list of all service fees to the probationer.

B. Supervision. The Court shall have the sole responsibility of determining the appropriate service(s) for each probationer. In general, Contractor shall monitor and supervise probationers to ensure compliance with the Court's order of probation. Contractor shall make a supervision assessment of the offender and determine the probationer's reporting schedule.

C. Restitution, Fine and Fee Collection. The Court shall have the sole authority to determine monetary amounts required by probationers. Contractor shall collect restitution, fines, court costs and fees, program fees, and probation fees as ordered by the Court. Contractor shall provide an itemized bill prepared in accordance with accepted accounting practices for each month for each probationer. Contractor shall comply specifically with rule 105-2-.15 of the rules for misdemeanor probation services of the Department of Community Supervision, O.C.G.A 42-8-103, 17-15-13 and 17-14-8 in the collection and disbursement of all monies.

D. Contractor shall provide probationer a written receipt and balance statement after each payment.

E. Offenders determined by the Court to have a significant financial hardship. Offenders determined by the Court to have significant financial hardship in accordance with O.C.G.A. Section 42-8-102 shall be supervised at no cost to the probationer or the Court or the governing body.

F. A schedule of allowed Probation Fees shall be attached to the Contract. Attachment A.

G. Contractor may only charge fees found in Exhibit A.

H. Probationers shall always be allowed to make greater payments than the minimum required by the payment schedule, and shall always be allowed to prepay fines, costs, and restitution in full without penalty. No prepayment shall be required to be made toward Probation Fees not yet due and payable. Contractor shall give clear instruction to probationers on how to request that community service be used to satisfy financial or other obligations of sentence. The Court shall, from time to time, give Contractor direction as to the amount of credit to be given per hour of eligible community service.

I. Contractor shall establish and comply with written internal policies giving probation officers standards for managing financial non-compliance: establishing minimum and maximum degrees of financial non-compliance that will prompt the officer to require increased reporting or to request a court hearing. If probationer claims the financial non-compliance is due to significant financial hardship as described in O.C.G.A. Section 42-8-102 and in the applicable Bench Card published by Administrative Office of the Courts, Contractor shall conduct an initial assessment of significant financial hardship and supply the results to the Court within 30 days for the Court to make a final determination of whether significant financial hardship exists.

13. Community Service. Contractor shall coordinate, monitor, and ensure compliance with community service by each probationer as ordered by the Court. The court may convert fines, statutory surcharges, and probation supervision fees to community service on the same basis as it allows a defendant to pay a fine through community service as set forth in subsection (d) of Code Section 17-10-1. Contractor will maintain records of service participation.

A. Contractor shall not recognize community services hours at any agency that has not been approved by Court. Agencies may apply to be a community service provider by following the procedures articulated in O.C.G.A. § 42-3-51 and, if accepted by the Court, are governed by the restrictions found therein. Contractor shall ensure that actual and appropriate community service work is performed for the number of hours credited, and properly supervised and certified by a responsible individual at the agency. Probationers shall not be allowed to perform community service under supervision of any relative. Agencies improperly supervising probationers or certifying work not performed or hours not worked shall be removed from the list of approved agencies.

Contractor shall maintain a list of agencies which qualify as community service supervision agencies pursuant to OCGA § 42-3-50-51. Contractor should investigate each agency to ensure that the agency provides appropriate community service opportunities with appropriate supervision. Contractor shall immediately report to the Court any violations by each agency so that the Court may consider whether to remove any such agency from its list of approved community service providers. Contractor may require additional reports to probation because of delay in beginning or completing community service. If probationer continues to substantially fail to perform community service timely after an initial opportunity to correct the violation, Contractor shall promptly bring the violation to the Court's attention via petition to revoke or other means directed by the Court. Contractor shall not convert community service to cash or other forms without the express written approval of the Court, including the specific type and amount of alternative payment or performance. An offender determined by the Court to be indigent shall have his or her community service supervised at no cost to the probationer or the Court or the governing body.

14. Drug/Alcohol Screening, other evaluations, and treatments. Contractor shall coordinate with local authorities and facilities, evaluation, and assessment of probationers for drug/alcohol rehabilitation, mental health or psychological counseling, or educational programs mandated by the Court and shall require probationer's compliance. Contractor shall conduct drug and alcohol screening as determined necessary by the Court.

A. Whenever a probationer is required by sentence of the Court to obtain an evaluation for substance abuse, anger or violence issues, or other mental health issues, Contractor will require prompt proof of such evaluation

from the probationer within the time limit set by the Court. If no time limit is set by the sentence, Contractor shall require such evaluation within the first 60 days of probation, or if the counseling is to follow an evaluation, then within 30 days after obtaining an evaluation.

B. Contractor may require additional reports to probation because of delay in beginning or completing evaluation or treatment. If a probationer continues to substantially fail to complete evaluation or obtain treatment after an initial opportunity to correct the violation, Contractor shall promptly bring the violation to the Court's attention via petition to revoke or other means directed by the Court.

C. Contractor shall deliver no evaluation or treatment services of any kind to probationers.

D. Contractor shall not require a probationer to undergo drug screens unless probationer's sentence expressly makes probationer subject to drug screens, the probation officer receives information that a probationer is using illicit drugs or the probationer's probation officer is able to observe indicia that the probationer is intoxicated by alcohol or drugs.

15. Electronic Monitoring. Contractor, when so ordered, shall direct any probationer ordered to undergo electronic monitoring to an entity capable of such monitoring. Contractor shall not receive any benefit from any monitoring entity.

16. Reports of Violations Probation and Revocation Procedures. Contractor shall recommend revocation of probation whenever the probationer has failed to substantially comply with the terms and conditions of probation. The Court shall provide Contractor with direction of what constitutes a substantial failure to comply with probation terms and conditions. Contractor shall prepare probation violation warrants and orders for submission to the Court. Contractor shall have probation officers available to testify at probation revocation hearings, sentencing hearings and such other hearings as deemed reasonable and necessary by the Court. The Court shall provide Contractor direction as to what curative measures should be taken in the case of minor violations. In all matters the Contractor shall comply with O.C.G.A. 42-8-102.

17. Pre-sentence Investigations. When directed by the Court, Contractor shall conduct pre-sentence investigations for the Court as requested. A written report shall be prepared and delivered to the Court. A pre-sentence investigation shall include: 1) a report on the circumstances of the offense, 2) a social and family background examination, 3) a criminal history check, through Georgia Crime Information Center and the National Crime Information Center, and 4) a report of current circumstances and conditions of the defendant. The defendant shall be responsible for payment of \$100.00 to Contractor prior to the pre-sentence investigation beginning. The County agrees to seek the information for Contractor through the Georgia Crime Information Center and the National Crime Information Center through its computer terminal and provide a copy of such check to the Contractor.

18. Pre-hearing Arrest Warrants. Except as expressly directed by the Court in a particular case, or as provided in paragraph a, below, Contractor shall not request issuance of an arrest warrant for a probationer prior to hearing based on the following types of violations: failure to pay fines, failure to perform community service; failure to attend classes or counseling; failure to obtain mental health evaluations. In these instances, Contractor shall request a pre-warrant revocation hearing before the Court unless other circumstances justify arrest prior to hearing. No warrant shall be requested or issued if the sole violation of probation is failure to pay probation fees.

19. Pre-Trial Diversion. When so ordered by the prosecutor of the court, or the court, Contractor will supervise Pre-Trial Diversion cases and ensure the defendant complies with such order. In the event the defendant fails to substantially comply with the order the prosecutor shall be promptly notified.

A. Providers may request issuance of an arrest warrant for a probationer prior to hearing based on the following types of violations: commission of a new criminal offense; threats to public safety or the safety of individual persons or property; threats to the safety of victims or contact with a victim in violation of sentence conditions or other court orders; failure to report to probation; failure to appear for court proceedings after due notice; use of alcohol or drugs, testing positive for alcohol or drugs, or refusing or failing to submit to drug screens in violation of a condition of probation; repeat violation of sentence conditions, where lesser sanctions have proven ineffective and limited remaining sentence time makes immediate arrest necessary; technical violations where less than 60 days remain on the sentence; and as specifically directed by the Court.

OBLIGATIONS OF THE COURT OR GOVERNING AUTHORITY

In consideration for the services of Contractor, the Court shall provide the following as described in paragraphs 19, 20, 21, 22, and 23:

20. Payment for Contractors Services. During the term of this Agreement and Contractor's satisfactory performance, the Court shall refer all offenders and pre-trial defendants ordered to serve time on probation or pre-trial diversion, to Contractor for purposes of probation supervision services. Contractor is authorized to collect authorized Probation Fees set forth in Exhibit A for each month or portion of a month a probationer is under probation supervision.

21. Probation Fee. The Court shall make payment of the applicable Probation Fee set forth in Exhibit A as a term and condition of the order of probation for each probationer assigned for supervision to Contractor unless the Court determines the probationer to be indigent, in which case the probationer shall not be required to pay any probation fee. If a case is determined to be a pay only case, or a consecutive pay only case, Contractor shall only require payment of three months' probation fees or until the cases are satisfied in full, whichever is first, and shall comply with O.C.G.A. 42-8-102 AND 42-8-103. Any probationer sentenced to consecutive terms of probation shall not be required to pay but one probation fee per month and no probation fee shall be due until any consecutive case begins. Neither the Court nor the County shall be liable for payment of any supervision fee or any program fee of a probationer.

22. Access to Criminal Histories. The Court shall assist Contractor in obtaining access to criminal histories in the Georgia Crime Information Center and National Crime Information Center through local law enforcement for Contractor to conduct pre-sentence or probationer investigations as may be requested.

23. Notice of Court Sessions. The Court shall provide Contractor with 14 days advance notice of all court sessions that Contractor is required to attend. Notice for purposes of this provision may be given by mail, telephone, or email to Georgia Probation Services, Inc.

24. Court Facilities. The Court shall provide to Contractor with an area, as available, for conduct of initial interviews and orientation with the probationer on the day of sentencing.

25. Period of Service. This agreement shall begin on October 1, 2026. This Agreement shall expire in one year. The contract will automatically renew each year thereafter, for four additional years, unless either party gives

notice to the other party at least 30 days prior to the renewal date. In no case should the contract continue for more than 5 years, at which time a new contract must be negotiated and signed by all parties. The Court and/or Governing Authority may terminate this Agreement immediately for cause, including without limitation material breach of this Agreement, insolvency of Contractor, filing of a voluntary or involuntary case in bankruptcy. Within thirty working days of termination, Contractor shall peacefully surrender to the Court all records and documents generated by Contractor in connection with this Agreement and the services thereunder and any equipment or supplies assigned to Contractor by the Court. All electronic records shall be securely transmitted to the Court or to the Court's designee upon written request of the Court or the County. Contractor shall turn over to the Clerk of Court any moneys collected or received less supervision fees validly incurred and duly owing to Contractor through the termination date. Any fines, costs, fees, or restitution received by Contractor from probationers of this Court after termination of this Agreement shall be forwarded to the Clerk of Court, other than fees earned by Contractor. The Court shall provide Contractor with a receipt for all property surrendered under this provision. Contractor may maintain a copy of records obtained or created because of this contract solely for legal and auditing purposes and may not use them for any other purpose. Contractor should use appropriate safeguards to prevent improper use or access to such records.

26. Insurance and Bond. Contractor shall provide evidence of general liability insurance coverage of at least \$1 million and bonding or insurance of staff of at least \$25,000. This insurance shall be maintained throughout the term of this contract.

27. Indemnification. Neither the Court nor the governing authority shall be liable for any damages, loss, or injury to any person, property, or effects who may claim a right arising out of any relationship of the same with Contractor for any acts of Contractor, its employees, agents, subcontractors, or representatives in performance of services by Contractor under this Agreement. Contractor shall indemnify and hold harmless the Court and the County and their officers, employees, agents, and insurers from any claims, demands, actions, proceedings, expenses, damages, liabilities, or losses (including but not limited to attorney's fees and costs) and any causes of action arising out of or in connection with services performed by Contractor or its employees, agents, or subcontractors under the terms of this Agreement.

28. Deficiency in Service by Contractor. In the event the Court and/or the County determines that there are deficiencies in the services provided by Contractor hereunder, the Court and/or the County may terminate this Agreement in accordance with Section L or notify the Contractor in writing as to the exact nature of such deficiency. Within 30 days of receipt of such notice, the Contractor shall cure or take reasonable steps to cure the deficiencies. In the event the Contractor fails to cure or take reasonable steps to cure the deficiencies either the Court or the County may declare the Contractor in default and may terminate this Agreement.

29. Time is of the Essence of this Agreement.

30. Compliance with the Law. The Contractor shall comply with all federal, state, and local laws statutes, regulations and ordinances arising out of or in connection with the performance of its services pursuant to this Agreement.

31. Independent Contractor. Contractor is an independent contractor and is not an agent, joint ventures or other affiliate of the County or Court in any way. Contractor shall use its own employees and agents to perform this Contract. It is agreed that Contractor is solely responsible for payment of all federal, state, and local income taxes, self-employed Social Security taxes, and any other similar obligations arising from the performance of this Agreement or receipt of compensation, therefore. The Contractor agrees to indemnify and hold harmless the Court and the County from and against all federal, state, or local tax liability or penalties that may arise from the

payments made to the Contractor pursuant to this Agreement. The Contractor acknowledges that neither it nor its employees are eligible for any benefits provided by the Court or the County to their respective employees.

32. Entire Agreement. This Agreement, including all exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties hereto and supersedes all agreements, whether written or oral, that may exist between the parties regarding the same. No representations, inducements, promises, or agreements between the parties not embodied herein shall be of any force and effect. No amendment or modification to this Agreement or any waiver of any provision hereto shall be effective unless in writing and signed by all parties to include the Court, the County and its governing authority, and Contractor.

33. Binding Agreement. This Agreement shall not be binding upon any successor to the undersigned Judge of the Court unless ratified by his/her successor in office. If a successor attains the position of undersigned judge, and this Agreement is not ratified by such successor, then Contractor shall be permitted a reasonable time, no less than sixty (60) days, in which to wind up its activities. This agreement shall be deemed to have been ratified by any successor unless written notice to the contrary is given to the Contractor. The Court has entered into this Agreement in part based on personal reliance in the integrity and qualifications of the staff of Contractor. The same is applicable to change in leadership of the Governing Authority.

34. Contractor may not delegate, assign or subcontract any obligation of Contractor's performance under the Contract and may not assign any right under this Contract, in either case without Court's written approval. The Court's discretion in this regard shall be absolute. Any notices made in accordance with this Agreement, except as otherwise set out in Paragraph 22, shall be in writing, and shall be made by registered or certified mail, return receipt requested, to:

Contractor's Address: Georgia Probation Services, Inc.
PO Box 906
Trenton, GA 30752

Governing Authority Address: Whitfield County Board of Commissioners
201 South Hamilton Street
Dalton, GA 30720

Court's Address: Honorable Sheri Blevins
205 N Selvidge Street
Suite G
Dalton, GA 30720

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT ON THE ____ DAY
OF _____, 20____.

PROBATION SERVICES CONTRACTOR:

GOVERNING AUTHORITY:

By: _____
Name: Tony M. Moreland
Title: CEO
Date: _____

By: _____
Name: Jevin Jenson
Title: Commission Chair
Date: _____

APPROVED BY JUDGE OF COURT:

By: _____
Name: Honorable Sheri Blevins
Title: Judge
Date: _____

Exhibit A

Item	Amount
Monthly supervision	51.00
Monthly supervision, pay-only cases	51.00
Monthly supervision for those declared indigent by the court	0.00
Drug screens	0.00
Pre-sentence investigation report	100.00 payable by defendant in advance

Amounts are exclusive of GCVEF, and other surcharges imposed as a matter of law.

In accordance with O.C.G.A. Section 42-8-101(b)(1), this Agreement shall be attached as an exhibit to documentation of the Governing Authority's approval to privatize probation services and the judge's express written consent to privatize probation services.

Probation Services Agreement

This Agreement is made by and between the Governing Authority of Whitfield County, Georgia (hereinafter "the County ") and Georgia Probation Services, Inc., a corporation organized under the laws of the State of Georgia with its principal place of business at PO Box 906, Trenton GA 30752 (hereinafter "Contractor") on behalf of the Superior Court of Whitfield County Georgia (hereinafter "the Court"). This Agreement is governed by Article 6 of Chapter 8 of Title 42 of the Official Code of Georgia, Annotated. The parties enter into the Agreement under the specific authority of 42-8-101.

NOW, THEREFORE, in consideration of the mutual covenants herein contained, the parties agree as follows:

SCOPE OF SERVICES AND RESPONSIBILITIES OF CONTRACTOR

In consideration of the obligations of the Court or the County , Contractor shall provide the following services.

Responsibilities of Probation Services Contractor

1. Compliance with Statutes and Rules. Contractor shall be registered with the Department of Community Supervision and shall comply with all laws that apply to probation companies in Georgia and all standards, rules and regulations promulgated by the Department of Community Supervision. All probation management activities and/or reporting activities performed by Contractor pursuant to this Agreement must be accomplished in strict compliance with all applicable Federal and Georgia laws, as are now in effect or hereafter may be amended. If a contradiction or conflict exists between all applicable Federal or Georgia laws and any terms, conditions, stipulations, etc., listed herein, the term, condition, stipulation, etc., listed herein shall not be applicable and the County shall, upon notification of a contradiction or conflict, issue an amendment to bring the term, condition, stipulation, etc., into compliance with the law.

2. Records and Confidentiality. Contractor shall keep all reports, files, records, and papers, either physical or digital, in a centralized location convenient to the County . Such reports, files, records, and papers are and shall remain the property of the County and shall be maintained in accordance with the Open Records Act. Contractor shall create and maintain files for each offender receiving services from Contractor in accordance with this Agreement. Contractor shall maintain the confidentiality of all files, records, and papers relative to supervision of probationers under this Agreement in accordance with applicable law. These records, files and papers shall be available only to the County , an auditor appointed by the County , the judge handling the case, the Department of Audits and Accounts, the Department of Community Supervision, the State Board of Pardons and Paroles, or the Board of Community Supervision, and to the probationer as provided in O.C.G.A. Section 42-8-109.2 and upon transfer of probation supervision to the State, to the Georgia Department of Corrections.

3. Financial Records. Contractor shall maintain financial records according to accepted accounting practices.

4. Employees Qualifications and Training: Contractor's Probation Officer Qualifications and Training. Contractor should employ competent and able personnel to provide the services to be rendered hereunder and to appropriately administer the caseload. Contractor shall abide specifically by rule 105-2-.09 of the rules for misdemeanor probation services of the Department of Community Supervision. Contractor shall have at least

one supervisor with five years' experience in corrections, parole, or probation services. Any person employed as and using the title of a private probation officer or probation officer must undergo a background check by the Department of Community Supervision. In accordance with O.C.G.A 42-8-107, and rule 105-2-.10 of the rules for misdemeanor probation services of the Department of Community Supervision. Any such person shall be at least 21 years of age at the time of appointment to the position of private probation officer or probation officer and shall have completed a standard two-year college course or have four years of law enforcement experience; provided, however, that any person employed as a private probation officer as of July 1, 1996, and who had at least six months of experience as a private probation officer or any person employed as a probation officer by a County, municipality, or consolidated government as of March 1, 2006, shall be exempt from such college requirements. Every private probation officer shall receive an initial 40 hours of orientation upon employment and shall receive 20 hours of continuing education per annum as approved by the board, provided that the 40 hour initial orientation shall not be required of any person who has successfully completed a basic course of training for supervision of probationers or parolees certified by the Peace Officer Standards and Training Council or any private probation officer who has been employed by a private probation corporation, enterprise, or agency for at least six months as of July 1, 1996, or any person employed as a probation officer by a City, municipality, or consolidated government as of March 1, 2006. In no event shall any person convicted of a felony be employed. Contractor shall ensure its policies and procedures meet any legal requirement for individual training.

A: Administrative Employees, Agents, Interns or Volunteer Qualifications and Training. Contractor should employ or appoint competent and able personnel to provide administrative services to be rendered hereunder and to appropriately administer administrative assistance to probationers and probation officers. In accordance with O.C.G.A 42-8-106.1 and 42-3-10 and the rules of the Department of Community Supervision any such person shall be at least 18 years of age, have signed a statement co-signed by the Director or his/her designee that the administrative employee, agent, inter or volunteer has received an orientation on these rules as well as operations guidelines relevant to the their job duties which will be maintained in the personnel files of Georgia Probation Services, Inc. Any such person shall have a high school diploma or its equivalent and shall complete a 16-hour initial orientation program within 6 months of appointment and 8 hours of annual in-service continuing education training consisting of the approved curriculum by the MPOU unit of the Department of Community Supervision. In addition, administrative staff must submit ongoing criminal background checks completed by the Department of Community Supervision, submit fingerprinting upon request, must maintain a clear criminal record, must report any arrest within 48 hours, and must abide by all laws and rules as it pertains to misdemeanor probation entities. In no event shall any person convicted of a felony be employed by Georgia Probation Services, Inc. in any capacity.

5. Criminal History and Background Check. Contractor represents and warrants that all employees have had or shall have criminal history and background checks by the Department of Community Supervision and have given or shall give the Department of Community Supervision written consent to conduct periodic criminal history checks.

6. Officer per Probationer Ratio and Standards of Supervision. Contractor shall manage caseload limits so as not to exceed 399 probationers per probation officer. Probation Officers shall make contact either in person, or by telephone or email with each probationer each month. The number of contacts shall be determined by the desire and compliance of the probationer and may be increased or decreased accordingly.

7. Location Place of Business. Contractor shall establish a schedule for meeting with probationers and the provision of services to probationers in the vicinity of Whitfield County Georgia so as not to place an undue burden on the probationers.

8. Reporting and record keeping procedures. Contractor shall abide specifically by rule 105- 2-.13 and 105-2-.14 of the rules for misdemeanor probation services of the Department of Community Supervision and O.C.G.A 42-8108 and 42-8-109.2 as to all reports and records. Contractor shall provide to the judge who approved this contract or his or her designee and the Board of Community Supervision (the "Board") a quarterly report summarizing the number of offenders under supervision; the amount of fines, statutory surcharges, and restitution collected; the amount of fees collected and the nature of such fees, including probation supervision fees, rehabilitation programming fees, electronic monitoring fees, drug or alcohol detection device fees, substance abuse or mental health evaluation or treatment fees, and drug testing fees **(NOTE; GEORGIA PROBATION SERVICES, INC DOES NOT CHARGE ANY ADDITIONAL FEE OTHER THAN THE SUPERVISION FEE)**; the number of community service hours performed by probationers under supervision; a listing of any other service for which a probationer was required to pay to attend; the number of offenders for whom supervision or rehabilitation has been terminated and the reason for the termination; and the number of warrants issued during the quarter; whether the case was closed successfully or unsuccessfully; the number of warrants issued during the quarter; the number of probationers using community service hours to satisfy fine or other financial obligations, and the number of community service hours so converted; amounts of unpaid financial obligations, specifying amounts of Probation Fees, crime victim funds, victim restitution, and fines/other funds to be paid to the court; and number of cases where each of the following types of requirements were incomplete: community service, evaluation/counseling, risk reduction school, defensive driving school. The report shall be delivered by the end of the month following the calendar quarter.

A. At least annually by January 31 of each year, Contractor shall provide a report to the Court and the governing authority that includes all information set forth in the preceding four quarterly reports.

B. Contractor shall provide such other reports as may be requested by the Court during the period of this Agreement which may include but are not limited to statistical reports, caseload data, and other records documenting the identity of the probationer, the status of each probationer's case, the services provided, and the monies collected. Contractor shall provide such reports to the Court or the governing authority within 30 days of the written request of the Court or the governing authority.

9. Tender of Collections. Contractor shall deliver over to the Clerk of Court at least monthly all funds paid by probationers, except that Contractor shall retain funds due for Probation Fees; shall pay Crime Victim Emergency Fund ("CVEF") fees directly to the Criminal Justice Coordinating Council; and shall pay victim restitution funds to the victim or to the Clerk of Court as provided below. All said sums shall be disbursed at least monthly to the person or entity entitled to such payment, by the 15th day of the month following payment by probationer.

A. Contractor shall tender to the Clerk of the Court a report of collections and all fines, fees, and costs collected during the month from probationers by the (15th) day of the following month. Restitution shall be paid to the victim by the (15th) day of the month following collection unless the Court orders payment to the clerk of court, and then it shall be paid as such other collections are paid to the Clerk. In the event Contractor cannot locate the victim, payment shall be made to the Clerk of Court. Contractor shall credit payments of funds in the following order of priority: 1) probation fees to include GCVEF. 2) restitution 3) Fines, 4) court costs and surcharges, Contractor shall not retain or profit from any fines, restitution, fees, or cost collected from probationers except the probation fee authorized by this Agreement.

10. Access to Contractor Records. All records shall be open to inspection upon the request of the County , the Court, the Department of Audits and Accounts, an auditor appointed by the County , or the Department of Community Supervision. Contractor shall fully cooperate with the inspection of records and shall provide timely and complete access to such records upon request.

A. Fiscal Audit: Contractor shall allow any auditor hired by the County to annually audit its records and books pertaining to the services rendered to the court upon request.

11. Conflict of Interest per O.C.G.A 42-8-109. Contractor shall not engage in any other employment, business, or activity which interferes with or conflicts with its duties and responsibilities as a probation corporation, enterprise, or agency under applicable law or which interferes with or conflicts with its duties and responsibilities under this agreement.

A. Contractor and its employees, agents and officers shall not have personal or business dealings, including the lending of money, with probationers under their supervision.

B. Contractor and its employees, agents and officers shall not own, operate, or have any financial interest in, be an instructor at, or be employed by any private entity which provides drug or alcohol education services or offers a DUI Alcohol or Drug Use Risk Reduction Program certified by the Department of Driver Services.

C. Contractor and its employees, agents and officers, shall not specify, directly or indirectly, a DUI Alcohol or Drug Use Risk Reduction Program which a probationer may or shall attend. This paragraph shall not prohibit furnishing any probationer, upon request, with the names of certified DUI Alcohol or Drug Use Risk Reduction Programs.

12. Scope of Services to Probationers by Contractor. Contractor shall provide the following services:

A. Court Attendance and Probationer Case History. During all court sessions, Contractor shall have a probation officer attend and interview each offender to complete a case and personal history and to provide orientation and instruction regarding compliance with the Court's ordered conditions of probation. At orientation, the probation officer shall provide a list of all service fees to the probationer.

B. Supervision. The Court shall have the sole responsibility of determining the appropriate service(s) for each probationer. In general, Contractor shall monitor and supervise probationers to ensure compliance with the Court's order of probation. Contractor shall make a supervision assessment of the offender and determine the probationer's reporting schedule.

C. Restitution, Fine and Fee Collection. The Court shall have the sole authority to determine monetary amounts required by probationers. Contractor shall collect restitution, fines, court costs and fees, program fees, and probation fees as ordered by the Court. Contractor shall provide an itemized bill prepared in accordance with accepted accounting practices for each month for each probationer. Contractor shall comply specifically with rule 105-2-.15 of the rules for misdemeanor probation services of the Department of Community Supervision, O.C.G.A 42-8-103, 17-15-13 and 17-14-8 in the collection and disbursement of all monies.

D. Contractor shall provide probationer a written receipt and balance statement after each payment.

E. Offenders determined by the Court to have a significant financial hardship. Offenders determined by the Court to have significant financial hardship in accordance with O.C.G.A. Section 42-8-102 shall be supervised at no cost to the probationer or the Court or the governing body.

F. A schedule of allowed Probation Fees shall be attached to the Contract. Attachment A.

G. Contractor may only charge fees found in Exhibit A.

H. Probationers shall always be allowed to make greater payments than the minimum required by the payment schedule, and shall always be allowed to prepay fines, costs, and restitution in full without penalty. No prepayment shall be required to be made toward Probation Fees not yet due and payable. Contractor shall give clear instruction to probationers on how to request that community service be used to satisfy financial or other obligations of sentence. The Court shall, from time to time, give Contractor direction as to the amount of credit to be given per hour of eligible community service.

I. Contractor shall establish and comply with written internal policies giving probation officers standards for managing financial non-compliance: establishing minimum and maximum degrees of financial non-compliance that will prompt the officer to require increased reporting or to request a court hearing. If probationer claims the financial non-compliance is due to significant financial hardship as described in O.C.G.A. Section 42-8-102 and in the applicable Bench Card published by Administrative Office of the Courts, Contractor shall conduct an initial assessment of significant financial hardship and supply the results to the Court within 30 days for the Court to make a final determination of whether significant financial hardship exists.

13. Community Service. Contractor shall coordinate, monitor, and ensure compliance with community service by each probationer as ordered by the Court. The court may convert fines, statutory surcharges, and probation supervision fees to community service on the same basis as it allows a defendant to pay a fine through community service as set forth in subsection (d) of Code Section 17-10-1. Contractor will maintain records of service participation.

A. Contractor shall not recognize community services hours at any agency that has not been approved by Court. Agencies may apply to be a community service provider by following the procedures articulated in O.C.G.A. § 42-3-51 and, if accepted by the Court, are governed by the restrictions found therein. Contractor shall ensure that actual and appropriate community service work is performed for the number of hours credited, and properly supervised and certified by a responsible individual at the agency. Probationers shall not be allowed to perform community service under supervision of any relative. Agencies improperly supervising probationers or certifying work not performed or hours not worked shall be removed from the list of approved agencies.

Contractor shall maintain a list of agencies which qualify as community service supervision agencies pursuant to OCGA § 42-3-50-51. Contractor should investigate each agency to ensure that the agency provides appropriate community service opportunities with appropriate supervision. Contractor shall immediately report to the Court any violations by each agency so that the Court may consider whether to remove any such agency from its list of approved community service providers. Contractor may require additional reports to probation because of delay in beginning or completing community service. If probationer continues to substantially fail to perform community service timely after an initial opportunity to correct the violation, Contractor shall promptly bring the violation to the Court's attention via petition to revoke or other means directed by the Court. Contractor shall not convert community service to cash or other forms without the express written approval of the Court, including the specific type and amount of alternative payment or performance. An offender determined by the Court to be indigent shall have his or her community service supervised at no cost to the probationer or the Court or the governing body.

14. Drug/Alcohol Screening, other evaluations, and treatments. Contractor shall coordinate with local authorities and facilities, evaluation, and assessment of probationers for drug/alcohol rehabilitation, mental health or psychological counseling, or educational programs mandated by the Court and shall require probationer's compliance. Contractor shall conduct drug and alcohol screening as determined necessary by the Court.

A. Whenever a probationer is required by sentence of the Court to obtain an evaluation for substance abuse, anger or violence issues, or other mental health issues, Contractor will require prompt proof of such evaluation

from the probationer within the time limit set by the Court. If no time limit is set by the sentence, Contractor shall require such evaluation within the first 60 days of probation, or if the counseling is to follow an evaluation, then within 30 days after obtaining an evaluation.

B. Contractor may require additional reports to probation because of delay in beginning or completing evaluation or treatment. If a probationer continues to substantially fail to complete evaluation or obtain treatment after an initial opportunity to correct the violation, Contractor shall promptly bring the violation to the Court's attention via petition to revoke or other means directed by the Court.

C. Contractor shall deliver no evaluation or treatment services of any kind to probationers.

D. Contractor shall not require a probationer to undergo drug screens unless probationer's sentence expressly makes probationer subject to drug screens, the probation officer receives information that a probationer is using illicit drugs or the probationer's probation officer is able to observe indicia that the probationer is intoxicated by alcohol or drugs.

15. Electronic Monitoring. Contractor, when so ordered, shall direct any probationer ordered to undergo electronic monitoring to an entity capable of such monitoring. Contractor shall not receive any benefit from any monitoring entity.

16. Reports of Violations Probation and Revocation Procedures. Contractor shall recommend revocation of probation whenever the probationer has failed to substantially comply with the terms and conditions of probation. The Court shall provide Contractor with direction of what constitutes a substantial failure to comply with probation terms and conditions. Contractor shall prepare probation violation warrants and orders for submission to the Court. Contractor shall have probation officers available to testify at probation revocation hearings, sentencing hearings and such other hearings as deemed reasonable and necessary by the Court. The Court shall provide Contractor direction as to what curative measures should be taken in the case of minor violations. In all matters the Contractor shall comply with O.C.G.A. 42-8-102.

17. Pre-sentence Investigations. When directed by the Court, Contractor shall conduct pre-sentence investigations for the Court as requested. A written report shall be prepared and delivered to the Court. A pre-sentence investigation shall include: 1) a report on the circumstances of the offense, 2) a social and family background examination, 3) a criminal history check, through Georgia Crime Information Center and the National Crime Information Center, and 4) a report of current circumstances and conditions of the defendant. The defendant shall be responsible for payment of \$100.00 to Contractor prior to the pre-sentence investigation beginning. The County agrees to seek the information for Contractor through the Georgia Crime Information Center and the National Crime Information Center through its computer terminal and provide a copy of such check to the Contractor.

18. Pre-hearing Arrest Warrants. Except as expressly directed by the Court in a particular case, or as provided in paragraph a, below, Contractor shall not request issuance of an arrest warrant for a probationer prior to hearing based on the following types of violations: failure to pay fines, failure to perform community service; failure to attend classes or counseling; failure to obtain mental health evaluations. In these instances, Contractor shall request a pre-warrant revocation hearing before the Court unless other circumstances justify arrest prior to hearing. No warrant shall be requested or issued if the sole violation of probation is failure to pay probation fees.

19. Pre-Trial Diversion. When so ordered by the prosecutor of the court, or the court, Contractor will supervise Pre-Trial Diversion cases and ensure the defendant complies with such order. In the event the defendant fails to substantially comply with the order the prosecutor shall be promptly notified.

A. Providers may request issuance of an arrest warrant for a probationer prior to hearing based on the following types of violations: commission of a new criminal offense; threats to public safety or the safety of individual persons or property; threats to the safety of victims or contact with a victim in violation of sentence conditions or other court orders; failure to report to probation; failure to appear for court proceedings after due notice; use of alcohol or drugs, testing positive for alcohol or drugs, or refusing or failing to submit to drug screens in violation of a condition of probation; repeat violation of sentence conditions, where lesser sanctions have proven ineffective and limited remaining sentence time makes immediate arrest necessary; technical violations where less than 60 days remain on the sentence; and as specifically directed by the Court.

OBLIGATIONS OF THE COURT OR GOVERNING AUTHORITY

In consideration for the services of Contractor, the Court shall provide the following as described in paragraphs 19, 20, 21, 22, and 23:

20. Payment for Contractors Services. During the term of this Agreement and Contractor's satisfactory performance, the Court shall refer all offenders and pre-trial defendants ordered to serve time on probation or pre-trial diversion, to Contractor for purposes of probation supervision services. Contractor is authorized to collect authorized Probation Fees set forth in Exhibit A for each month or portion of a month a probationer is under probation supervision.

21. Probation Fee. The Court shall make payment of the applicable Probation Fee set forth in Exhibit A as a term and condition of the order of probation for each probationer assigned for supervision to Contractor unless the Court determines the probationer to be indigent, in which case the probationer shall not be required to pay any probation fee. If a case is determined to be a pay only case, or a consecutive pay only case, Contractor shall only require payment of three months' probation fees or until the cases are satisfied in full, whichever is first, and shall comply with O.C.G.A. 42-8-102 AND 42-8-103. Any probationer sentenced to consecutive terms of probation shall not be required to pay but one probation fee per month and no probation fee shall be due until any consecutive case begins. Neither the Court nor the County shall be liable for payment of any supervision fee or any program fee of a probationer.

22. Access to Criminal Histories. The Court shall assist Contractor in obtaining access to criminal histories in the Georgia Crime Information Center and National Crime Information Center through local law enforcement for Contractor to conduct pre-sentence or probationer investigations as may be requested.

23. Notice of Court Sessions. The Court shall provide Contractor with 14 days advance notice of all court sessions that Contractor is required to attend. Notice for purposes of this provision may be given by mail, telephone, or email to Georgia Probation Services, Inc.

24. Court Facilities. The Court shall provide to Contractor with an area, as available, for conduct of initial interviews and orientation with the probationer on the day of sentencing.

25. Period of Service. This agreement shall begin on October 1, 2026. This Agreement shall expire in one year. The contract will automatically renew each year thereafter, for four additional years, unless either party gives

notice to the other party at least 30 days prior to the renewal date. In no case should the contract continue for more than 5 years, at which time a new contract must be negotiated and signed by all parties. The Court and/or Governing Authority may terminate this Agreement immediately for cause, including without limitation material breach of this Agreement, insolvency of Contractor, filing of a voluntary or involuntary case in bankruptcy. Within thirty working days of termination, Contractor shall peacefully surrender to the Court all records and documents generated by Contractor in connection with this Agreement and the services thereunder and any equipment or supplies assigned to Contractor by the Court. All electronic records shall be securely transmitted to the Court or to the Court's designee upon written request of the Court or the County. Contractor shall turn over to the Clerk of Court any moneys collected or received less supervision fees validly incurred and duly owing to Contractor through the termination date. Any fines, costs, fees, or restitution received by Contractor from probationers of this Court after termination of this Agreement shall be forwarded to the Clerk of Court, other than fees earned by Contractor. The Court shall provide Contractor with a receipt for all property surrendered under this provision. Contractor may maintain a copy of records obtained or created because of this contract solely for legal and auditing purposes and may not use them for any other purpose. Contractor should use appropriate safeguards to prevent improper use or access to such records.

26. Insurance and Bond. Contractor shall provide evidence of general liability insurance coverage of at least \$1 million and bonding or insurance of staff of at least \$25,000. This insurance shall be maintained throughout the term of this contract.

27. Indemnification. Neither the Court nor the governing authority shall be liable for any damages, loss, or injury to any person, property, or effects who may claim a right arising out of any relationship of the same with Contractor for any acts of Contractor, its employees, agents, subcontractors, or representatives in performance of services by Contractor under this Agreement. Contractor shall indemnify and hold harmless the Court and the County and their officers, employees, agents, and insurers from any claims, demands, actions, proceedings, expenses, damages, liabilities, or losses (including but not limited to attorney's fees and costs) and any causes of action arising out of or in connection with services performed by Contractor or its employees, agents, or subcontractors under the terms of this Agreement.

28. Deficiency in Service by Contractor. In the event the Court and/or the County determines that there are deficiencies in the services provided by Contractor hereunder, the Court and/or the County may terminate this Agreement in accordance with Section L or notify the Contractor in writing as to the exact nature of such deficiency. Within 30 days of receipt of such notice, the Contractor shall cure or take reasonable steps to cure the deficiencies. In the event the Contractor fails to cure or take reasonable steps to cure the deficiencies either the Court or the County may declare the Contractor in default and may terminate this Agreement.

29. Time is of the Essence of this Agreement.

30. Compliance with the Law. The Contractor shall comply with all federal, state, and local laws statutes, regulations and ordinances arising out of or in connection with the performance of its services pursuant to this Agreement.

31. Independent Contractor. Contractor is an independent contractor and is not an agent, joint ventures or other affiliate of the County or Court in any way. Contractor shall use its own employees and agents to perform this Contract. It is agreed that Contractor is solely responsible for payment of all federal, state, and local income taxes, self-employed Social Security taxes, and any other similar obligations arising from the performance of this Agreement or receipt of compensation, therefore. The Contractor agrees to indemnify and hold harmless the Court and the County from and against all federal, state, or local tax liability or penalties that may arise from the

payments made to the Contractor pursuant to this Agreement. The Contractor acknowledges that neither it nor its employees are eligible for any benefits provided by the Court or the County to their respective employees.

32. Entire Agreement. This Agreement, including all exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties hereto and supersedes all agreements, whether written or oral, that may exist between the parties regarding the same. No representations, inducements, promises, or agreements between the parties not embodied herein shall be of any force and effect. No amendment or modification to this Agreement or any waiver of any provision hereto shall be effective unless in writing and signed by all parties to include the Court, the County and its governing authority, and Contractor.

33. Binding Agreement. This Agreement shall not be binding upon any successor to the undersigned Judge of the Court unless ratified by his/her successor in office. If a successor attains the position of undersigned judge, and this Agreement is not ratified by such successor, then Contractor shall be permitted a reasonable time, no less than sixty (60) days, in which to wind up its activities. This agreement shall be deemed to have been ratified by any successor unless written notice to the contrary is given to the Contractor. The Court has entered into this Agreement in part based on personal reliance in the integrity and qualifications of the staff of Contractor. The same is applicable to change in leadership of the Governing Authority.

34. Contractor may not delegate, assign or subcontract any obligation of Contractor's performance under the Contract and may not assign any right under this Contract, in either case without Court's written approval. The Court's discretion in this regard shall be absolute. Any notices made in accordance with this Agreement, except as otherwise set out in Paragraph 22, shall be in writing, and shall be made by registered or certified mail, return receipt requested, to:

Contractor's Address: Georgia Probation Services, Inc.
PO Box 906
Trenton, GA 30752

Governing Authority Address: Whitfield County Board of Commissioners
201 South Hamilton Street
Dalton, GA 30720

Court's Address: Honorable Cindy Morris
205 N Selvidge Street
Dalton, GA 30720

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT ON THE ____ DAY
OF _____, 20____.

PROBATION SERVICES CONTRACTOR:

GOVERNING AUTHORITY:

By: _____
Name: Tony M. Moreland
Title: CEO
Date: _____

By: _____
Name: Jevin Jenson
Title: Commission Chair
Date: _____

APPROVED BY JUDGE OF COURT:

By: _____
Name: Honorable Cindy Morris
Title: Chief Judge
Date: _____

Exhibit A

Item	Amount
Monthly supervision	51.00
Monthly supervision, pay-only cases	51.00
Monthly supervision for those declared indigent by the court	0.00
Drug screens	0.00
Pre-sentence investigation report	100.00 payable by defendant in advance

Amounts are exclusive of GCVEF, and other surcharges imposed as a matter of law.

DALTON-VARNELL-WHITFIELD COUNTY PLANNING COMMISSION
503 WEST WAUGH STREET
DALTON, GA 30720

MEMORANDUM

TO: Whitfield County Board of Commissioners
Robert Sivick
Robert Smalley
Jean Price-Garland

FROM: Jim Lidderdale
Chairman

DATE: August 25, 2026

A. To hear the request of Chrissie Cline to rezone from General Agriculture (GA) to Rural Residential (R-5) a tract of land totaling 1.00 acre located at 2771 Deep Springs Road, Dalton, Georgia. Parcel (10-216-04-000) (County)

The most recent meeting of the Dalton-Varnell-Whitfield County Planning Commission was held on August 24, 2026, at 6:00 p.m. in the Whitfield County Courthouse meeting room. A portion of the agenda included a public hearing concerning the above matter. A quorum of five members of the Planning Commission was present. All legal requirements for advertising and posting the public hearing were met. The petition was represented by Chrissie Cline.

Public Hearing Summary:

Ethan Calhoun summarized the staff analysis, which recommended the R-5 rezoning of the subject property. There were no further questions for Calhoun.

Chrissie Cline represented the petition with no additional statements.

With no other comments heard for or against, Chairman Lidderdale closed the public hearing at approximately 6:07 PM.

Recommendation:

Chairman Lidderdale sought a motion for the R-5 rezoning. Brad Ramsey made a motion to approve the R-5 rezoning. Chris Shiflett seconded the motion. There was a unanimous recommendation to approve the R-5 rezoning (4-0).

DALTON-VARNELL-WHITFIELD COUNTY PLANNING COMMISSION
503 WEST WAUGH STREET
DALTON, GA 30720

MEMORANDUM

TO: Whitfield County Board of Commissioners
Robert Sivick
Robert Smalley
Jean Price-Garland

FROM: Jim Lidderdale
Chairman

DATE: August 25, 2026

A. To hear the request of Sharon Gibson to rezone from General Agriculture (GA) to Rural Residential (R-5) a tract of land totaling 2 acres located at 1337 Wimpy Road, Ringgold, Georgia. Parcel (27-119-01-000) (County)

The most recent meeting of the Dalton-Varnell-Whitfield County Planning Commission was held on August 24, 2026, at 6:00 p.m. in the Whitfield County Courthouse meeting room. A portion of the agenda included a public hearing concerning the above matter. A quorum of five members of the Planning Commission was present. All legal requirements for advertising and posting the public hearing were met. The petition was represented by Sharon Gibson.

Public Hearing Summary:

Ethan Calhoun summarized the staff analysis, which recommended approval of the requested R-5 rezoning of the subject property. There were no further questions for Calhoun.

Sharon Gibson represented the petition stating their need to divide the subject property from a parent tract in order to care for a loved one now in assisted living.

With no other comments heard for or against, Chairman Lidderdale closed the public hearing at approximately 6:10 PM.

Recommendation:

Chairman Lidderdale sought a motion for the R-5 rezoning. Octavio Perez made a motion to approve the R-5 rezoning. Dave Patterson seconded the motion. There was a unanimous recommendation to approve the R-5 rezoning (4-0).

DALTON-VARNELL-WHITFIELD COUNTY PLANNING COMMISSION
503 WEST WAUGH STREET
DALTON, GA 30720

MEMORANDUM

TO: Whitfield County Board of Commissioners
Robert Sivick
Robert Smalley
Jean Price-Garland

FROM: Jim Lidderdale
Chairman

DATE: August 25, 2026

A. To hear the request of Diana Rico to rezone from Neighborhood Commercial (C-1) Conditional to Low Density Single Family Residential (R-2) a tract of land totaling 0.372 acres located at 2319 Cleveland Highway, Dalton, Georgia. Parcel (12-103-02-063) (County)

The most recent meeting of the Dalton-Varnell-Whitfield County Planning Commission was held on August 24, 2026, at 6:00 p.m. in the Whitfield County Courthouse meeting room. A portion of the agenda included a public hearing concerning the above matter. A quorum of five members of the Planning Commission was present. All legal requirements for advertising and posting the public hearing were met. The petition was represented by Dina Rico.

Public Hearing Summary:

Ethan Calhoun summarized the staff analysis, which recommended approval of the requested R-2 rezoning of the subject property. Brad Ramsey asked Calhoun why the petitioner did not request to rezone the other adjacent lots zoned C-1 Cond. Calhoun stated that the petitioner may be better suited to disclose plans outside of the rezoning application. There were no further questions for Calhoun.

Diana Rico represented the petition stating their need to use the dwelling on the subject property as a primary residence. Brad Ramsey confirmed with Rico that the adjacent C-1 tracts in the petitioner's ownership were intended for commercial use but not yet occupied.

With no other comments heard for or against, Chairman Lidderdale closed the public hearing at approximately 6:16 PM.

Recommendation:

Chairman Lidderdale sought a motion for the R-2 rezoning. Octavio Perez made a motion to approve the R-rezoning. Chris Shiflett seconded the motion. There was a unanimous recommendation to approve the R-2 rezoning (4-0).